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IN THE HIGH COURT OF KARNATAKA
AT BANGALORE

W.P.NO. **/2013**

BETWEEN

41461 - 467

Dr.S.R.Jayakumar
and others

...Petitioners

AND

State of Karnataka and others

...Respondents

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Place: Bangalore
Date:

Advocate for Petitioner
(H. Mohan Kumar)

IN THE HIGH COURT OF KARNATAKA
AT BANGALORE

W.P.NO. /2013

BETWEEN

Dr.S.R.Jayakumar
and others

...Petitioners

AND

State of Karnataka and others

...Respondents

SYNOPSIS

Sl. No.	Date	Events
1	30.12.1997	The 3 rd respondent Institute published the seniority list of Scientist of the Institute. One Dr.Renukaprasad approached this Hon'ble Court in W.P.No.2522/1998 challenging the said seniority list. Dr.S.R.Jaykumar and others approached this Hon'ble Court in W.P.No.3863-3865/1998 and Dr.M.D.Venkatesha and others approached this Hon'ble Court in W.P.No.4183-4186/1998)
2	06.04.2000	W.P.No.2522/1998 came to be allowed and the seniority list dated 30.12.1997 was set aside. A Direction was issued to the 3 rd respondent to prepare fresh

		seniority list of Scientists and to effect promotion accordingly. The petitioners herein had also approached this Hon'ble Court in W.P.No.3863 to 3865/1998 C/w W.P.No.4183 to 4186/1998. These petitions also came to be allowed in terms of the order dtd: 06.04.2000 in W.P.No.2522/1998, thereby holding that the petitioners were senior to the persons promoted to the post of scientists-3 w.e.f. the date on which their immediate junior was promoted
3	02.09.2003	The 3 rd respondent Institute and other private respondents preferred Writ Appeals challenging the order dated 06.04.2000 passed by this Hon'ble Court in W.P.No.2522/1998 and other connected writ petitions. But all the appeals have been withdrawn.
4	15.11.2012	Since the 3 rd respondent did not comply with the order passed by this Hon'ble Court in W.P.No.2522/1998 and other connected writ petitions of the petitioners herein, they preferred one more writ petition seeking a

		direction for implementation of the same in W.P.No.45293-45399/2012. This Hon'ble Court disposed of the said petition with a direction to the 3 rd respondent to implement the earlier order of this court in W.P.No.2522/1998.
5	22.11.2012	The petitioners submitted a representation to the 3 rd respondent to implement the order enclosing a copy of the order.
6	28.12.2012	The 3 rd respondent issued an official memorandum and published the seniority list of scientist as on 30.12.1997.
7	07.03.2013	As the 2 nd respondent did not take any action in the matter, the petitioners submitted one more representation to the 2 nd respondent through 3 rd respondent.
8	27.05.2013	The 2 nd respondent accorded approval to the seniority list issued by the 3 rd respondent.
9	13.06.2013	In the meantime the petitioners had approached this Hon'ble Court by preferring contempt petitions in C.C.C.No.728-732/2013 (Civil) and the same came to be dropped on the ground that by according approval

		to the seniority list, the 2 nd respondent had substantially implemented the order of this court.
10	12.07.2013	The 2 nd respondent issued endorsement stating that unless and until the petitioners point out about their rights to promote to any higher cadre with retrospective effect under the law, the university is not in a position to consider their case for any promotion.

Being aggrieved by the endorsement dated 12.07.2013 issued by the 2nd respondent the petitioners having left with no other alternative and efficacious remedy are before this Hon'ble Court seeking to quash the same.

Place: Bangalore
Date:

Advocate for Petitioner
(H. Mohan Kumar)

IN THE HIGH COURT OF KARNATAKA
AT BANGALORE

(ORIGINAL JURISDICTION)

W.P.NO. 41461-468 /2013

BETWEEN

1. Dr.S.R.Jayakumar
S/o K.Seetharamiah, *Retired as submitted on 27/8/14*
Aged 64 years,
R/at No.20, "Benaka Bhaskara",
8th Cross, Bhuvaneshwarinagar,
Bangalore-560 024.
2. Dr.Maya Madhukar Babu,
S/o Vajravelu, *Retired*
Aged about 66 years,
R/at No.4, 6th Main,
SFS 407, 4th Phase,
Newtown, Yelahanka,
Bangalore-560 064.
3. Dr.M.M.Kumar,
S/o Marulappa,
Aged 64 years, *Retired*
R/at No.1070, 25th Main Road,
15th Cross, Banashankari II Stage,
Bangalore-560 070.
4. Dr.M.D.Venkatesha
S/o Dasappa Gupta.M.R,
Aged : 52 years,
Working as Joint Director,
Institute of Animal Health and Veterinary
Biologicals, Hebbal,
Bangalore-24.
5. Dr.N.G.Ramesh Babu, *Retired*
S/o Govinda Shetty N.R.

Aged: 53 years,
R/at No.61, 6th Cross,
Pai Layout, Hulimavu,
Bannerughatta Road,
Bangalore-560 076.

6. Dr.K.Sripad,
S/o Krishnarao.R.
Aged 51 years,
Working as Deputy Director,
Institute of Animal Health and Veterinary
Biologicals, Hebbal,
Bangalore-24,
7. Dr.P.Giridhar,
S/o S.Papanna,
Aged 54 years,
Working as Joint Director,
Institute of Animal Health and Veterinary
Biologicals, Hebbal,
Bangalore-24.

AND

1. State of Karnataka,
Dept. of Animal Husbandry and
Fisheries (Animal Husbandry)
Vikasa Soudha,
Bangalore-01
Represented by its
Principal Secretary
2. Karnataka Veterinary,
Animal & Fisheries Sciences
University, Nandi Nagar,
Bidar-585 401
Rep. by its Registrar
3. The Director,
The Institute of Animal Health and Veterinary
Biologicals, Hebbal,
Bangalore-24,

...Respondents

**MEMORANDUM OF WRIT PETITION UNDER
ARTICLES 226 AND 227 OF THE CONSTITUTION
OF INDIA**

The petitioners most respectfully submit as follows;

1. It is submitted that, being aggrieved by the endorsement issued by the 2nd Respondent dated 12.07.2013, in No.R/Rett/WP No.2522/45293-99/2013-14/1839, the petitioners are before this Hon'ble Court seeking to quash the same and issuance of directions to the 2nd respondent to implement the Official Memorandum dated 28.12.2012 in No. IAH/EST/WP-45293-299/143/12-13/2934, issued by the 3rd respondent and for other reliefs.

FACTS OF THE CASE

2. It is submitted that, one certain Dr.Renukaprasad had approached this Hon'ble Court in W.P.No.2522/1998 seeking for a writ to quash a seniority list of Institute Scientists prepared and published by the 3rd respondent institute in No.IAH/EST/ಜೀವಕೃತ/1997-98, dtd: 30.12.1997 as illegal and void. The consequential prayer was to direct the institute to prepare and publish a final seniority list of Scientists by treating the respondents therein as Juniors to him and lastly for a direction to Karnataka Veterinary Animal & Fisheries Sciences University,

Nandi Nagar, Bidar and the institute for grant of promotion to him to the post of Joint Director w.e.f 01.03.1993, the date on which his immediate junior Dr.R.Lakshminarayana was promoted with all consequential service and monetary benefits. Dr.Lakshminarayana, subsequently was promoted to the post of Director of the 3rd respondent Institute on 07.11.1997 based on the seniority list which was quashed by this Hon'ble court.

3. It is submitted that, the petitioners being similarly aggrieved by the seniority list dtd: 30.12.1997 and promotion given to their juniors, to the post of Deputy Director w.e.f 13.6.1987, to the post of Joint Director (Scientist-4) w.e.f 01.03.1993 and to the post of Director w.e.f 7.11.1997, preferred writ petitions in W.P.Nos.3863 to 3865/1998 and W.P.Nos.4183 to 4186/1998. A copy of the Seniority list of Scientists dtd: 30.12.1997 is herewith produced as **Annexure-A.**

4. It is submitted that, after hearing both the parties this Hon'ble Court allowed W.P.No.2522/1998 by an order dtd: 06.04.2000 in the following terms. The operative portion of the order is as under:-

"Para 37:- In the result, writ petition deserves to be allowed. Accordingly it is allowed. Rule made absolute. The impugned seniority list dtd: 30.12.1997

is set aside. A direction is issued to the respondent society to prepare fresh seniority list of Deputy Directors keeping in view the observation made by this court in the course of this order within six months from the date of receipt of a copy of this courts orders. Till such time the respondents are directed not to disturb any promotions granted basing on the seniority list prepared earlier. In the fact and circumstances of this case, parties are directed to bear their own costs. Ordered accordingly".

A copy of the judgment of this Hon'ble Court dtd: 06.04.2000 is herewith produced as **Annexure-B.**

5. It is further submitted that, the petitions of the petitioners herein were also came to be allowed in terms of the order dtd: 06.04.2000 in W.P.No.2522/1998. A copy of the order is herewith produced as **Annexure-C.**

6. It is submitted that, the 3rd respondent Institute preferred an appeal against the order dtd; 06.04.2000 of this Hon'ble Court in W.A.No.3951/2000. Some of the private respondents had also preferred writ appeal in W.A.No.3943/2000 and all the petitioners were made party respondents. In all other writ appeals, the

petitioners were not the respondents. The 3rd respondent Institute also preferred W.A.No.6223-6229/2000 in which the petitioners were party respondents.

7. It is submitted that, during the pendency of W.A.No.3951/2000 the 3rd respondent Institute promoted Dr.Renukaprasad to the cadre of Scientist - IV on 13.06.2002. It was submitted before the Division Bench that Dr.Renukaprasad is not interested in prosecuting the appeal and enforcing the rights accrued to him in W.P.No.2522/1998. Therefore, he withdrew the writ petition and accordingly the writ appeal came to be dismissed as having become infructuous by an order dtd: 02.09.2003. In the said order it is also said that, "however it is made clear that the dismissal of the writ petition No.2522/1998 would not affect the rights of other parties who have filed writ petitions before this Court and which have been allowed following the decision rendered in W.P.No.2522/1998". Therefore, it is clear that the rights of the petitioners accrued to them in their writ petitions have been protected by this Hon'ble Court. A copy of the order is herewith produced as **Annexure-D**.

8. It is submitted that, one Dr.K.L.Revappa along with others had also approached this Hon'ble Court challenging the order dt: 06.04.2000 in W.P.No.2522/1998 in W.A.No.3922-29/2000. This

appeal was also dismissed as not pressed by an order dated 02.09.2003. A copy of the order is herewith produced as **Annexure-E**.

9. It is further submitted that three more persons had also filed Writ Appeal No.3943/2000 which also came to be dismissed as not pressed by an order dt: 02.09.2003. A copy of the order is herewith produced as **Annexure-F**.

10. Dr.S.R.Jayakumar, the 1st petitioner herein was issued with a letter by the 3rd respondent Institute asking him not to contest the writ appeals pending before this Hon'ble Court. But the 1st petitioner refused to do so and as a result of which he was denied promotion. He retired by attaining Superannuation on 31.12.2005, by which time all the W.A.'s were dismissed and there was an obligation on the part of the Institute to effect promotion as per the direction of this Hon'ble Court but 3rd respondent did not do so.

11. Dr.M.M.Babu, the 2nd petitioner herein was retired on 31.12.2003 without getting any promotion, though all the W.A.'s were dismissed by that time and there was an obligation on the part of the institute to effect promotion as per the direction issued by this Hon'ble Court but 3rd respondent did not do so.

12. Dr.N.G.Ramesh Babu, the 5th petitioner herein was promoted to the post of Scientist-3 on 23.11.2002. Thereafter, he took voluntary retirement from the Institute, with effect from 31.10.2003 by which time all the W.A.'s were dismissed and there was an obligation on the part of the Institute to effect promotion as per the direction issued by this Hon'ble Court but 3rd respondent did not do so.

13. It is further submitted that the 3rd respondent institute had also filed W.A.No.6223-24 and 6226/2000 wherein the petitioners were made party respondents. The said appeals also came to be dismissed as having become infructuous by an order dt: 02.09.2003. But in para-2 of the judgment it is recorded that Dr.M.D. Venkatesha, Dr.N.G.Ramesh Babu and Dr.P.Giridhar had filed a Memo seeking to withdraw their writ petitions in numbers 4183/1998, 4185/1998 and 4186/1998. This has crept into the order on a false submission made by the Institute which was unfortunately being endorsed by the Counsel appearing for the petitioners as well. But in fact none of these petitioners have filed Memo seeking to withdraw their writ petitions. As a result of which the petitioners have not forgone their rights accrued to them in the order passed by this Hon'ble Court in W.P.No.4183-4184/1998 and 4186/1998, dated 06.04.2000. In the said order it is also recorded that the above said petitioners have been given promotion

to the cadre of scientist-3 on 01.01.2003. But infact Dr.M.D.Venkatesha and Dr.N.G.Ramesh Babu have been promoted to the cadre of Scientist-3 by an order dated 23.11.2002, and Dr.P.Giridhar was given promotion to the cadre of Scientists-3 on 25.02.2004. In the said promotion order the 3rd respondent Institute had stated that the promotion order is subject to the outcome of the writ Appeals pending before this Hon'ble Court. A copy of the judgment in W.A.No.6223-24 and 6226/2000 is herewith produced as **Annexure-G**. Copies of order of promotions dated 23.11.2002 and 25.02.2004 are herewith produced as **Annexure-H, J and K** respectively.

14. It is further submitted that, Dr.M.D.Venkatesh, the 4th petitioner herein was issued with an official Memorandum dated 01.01.2003 by the 3rd respondent institute stating that the case of Dr.M.D.Venkatesh for promotion to the cadre of Scientist-3 would be considered only when he does not contest the Writ Appeal pending before this Hon'ble Court. A copy of O.M. dated 01.01.2003 is herewith produced as **Annexure-L**. Accordingly, Dr.M.D.Venkatesh submitted a Memo through his counsel before this Hon'ble Court stating that he does not want to contest the writ appeals. A copy of the Memo is herewith produced as **Annexure-M**.

15. It is submitted that, all the Writ Appeals which were directed against the order dated 06.04.2000 in

W.P.No.2522/1998 and other connected writ petitions were disposed off on 02.09.2003. Thereafter the 3rd respondent Institute issued letter dated 08.02.2004 to Dr.Sripad and Dr.P.Giridhar, the 6th and 7th petitioners herein, stating that their case for promotion to the cadre of Scientist-3 would be considered only when they do not contest the Writ Appeals pending before this Hon'ble Court, although the 3rd respondent knew that no such appeals were pending as on the date 08.02.2004. A copy of direction issued by the 3rd respondent dated 08.02.2004 is herewith produced as **Annexure-N**. Subsequent thereto Dr.Sripad and Dr.Giridhar were given promotion to the cadre of Scientist-3 by order dated 25.02.2004. In the said promotion order, the 3rd respondent has stated that the promotion order is subject to the outcome of the Writ Appeals pending before this Hon'ble Court, despite the fact that the 3rd respondent was aware that no such appeals were pending as on 25.2.2004. A copy of the order of promotion to Dr.Sripad dated 25.02.2004 is herewith produced as **Annexure-P**.

16. It is further submitted that, Dr.M.M.Kumar the 3rd petitioner herein, was given promotion to the cadre of Scientist-4 by an order dated 09.12.2004. In the said promotion order, the 3rd respondent has stated that the promotion order is subject to the out come of the Writ Appeals pending before this Hon'ble Court,

despite the fact that the 3rd respondent was aware that no such appeals were pending as on 09.12.2004. A copy of the order dated 09.12.2004 is herewith produced as **Annexure-Q**.

17. It is submitted that the 3rd respondent has been telling the petitioners that the writ appeals filed by the Institute are still pending and immediately after the disposal of those appeals, their case for preparing fresh seniority list of scientists and effecting promotions to them from the date on which promotions to different cadres as given to their immediate junior, would arise. Till today the 3rd respondent Institute kept all the petitioners in dark saying that the writ appeals are still pending. Therefore, the petitioners were under the bonafide impression that their case for promotion would be considered immediately after the disposal of writ appeals believing that such appeals are still pending. It is painful to submit here, that the counsel appearing of the petitioner in those appeal also made the petitioners to believe that writ appeals are still pending. When the 4th petitioner came to know about the disposal of writ appeals on the website, he made an application to obtain certified copy of the orders. To the shock and surprise of the petitioners, they came to know that all the writ appeals which were directed against the order dated 06.04.2000 in W.P.No.2522/1998 and all other connected matters,

have been disposed off on 02.09.2003 itself. None of the appeals have been prosecuted and disposed off on merits. Whereas, the appeals either have been withdrawn or have been dismissed as having been become infructuous.

18. It is submitted that though some of the petitioners have been given promotion, the 3rd respondent Institute has given such promotions by operating the seniority list of scientists dtd: 30.12.1997. The said seniority list has been set aside by this Hon'ble Court and there is a direction to prepare a fresh seniority list of scientists. As per the said order the 3rd respondent Institute is bound to prepare the fresh seniority list and effect promotion to the petitioners based on such revised seniority list. By doing so, the petitioners are entitled for promotion to Scientist-3 w.e.f. 13.6.1987, Scientist-4 / Joint Director w.e.f. 1.3.1993 and Director w.e.f. 7.11.1997, the dates on which their immediate Juniors were promoted. This would obviously result in huge difference in the salary and other benefits to the petitioners. No doubt the first, 2nd, 3rd and 5th petitioners are retired, but still the implementation of the order of this Hon'ble Court would certainly bring about huge difference in their pensionary benefits. As 4th, 6th and 7th petitioners are still in service, petitioners are entitled for retrospective promotion to Scientist - 3 w.e.f. 13.6.1987, Scientist-4 / Joint

Director w.e.f. 1.3.1993 and Director w.e.f. 7.11.1997, fixation of scales and salary and this would certainly bring about huge difference in the rank / cadre, salary and other benefits. Therefore, the petitioners are before this Hon'ble Court.

19. It is submitted that in the meantime during the year 2006 the 3rd respondent Institute which was an autonomous society registered under the Registration of Societies Act came to be merged into the Karnataka Veterinary Animal and Fisheries Sciences University at Bidar by the advent of KVAFSU Act, 2004. Thereafter, by an order of the State Government dated 13.01.2006, the 3rd respondent Institute came under the administrative control of the 2nd respondent University. Since all administrative decisions are being taken by the 2nd respondent in respect of the matters pertaining to the 3rd respondent Institute, the 2nd respondent has been arrayed as a necessary party in this proceeding.

20. It is submitted that, the 3rd respondent did not implement the direction issued by this Hon'ble Court in W.P.No.2522/1998 dated 06.04.2000, the petitioners preferred W.P.Nos.45293-45299/2012 (S-Pro) seeking a direction to the 2nd and 3rd respondents to implement the court order. This Hon'ble Court by an order dated 15.11.2012 disposed the writ petition with a direction to the respondents as sought for. A

copy of the order dated 15.11.2012 is herewith produced as **Annexure-R**.

21. It is submitted that, the petitioners submitted representation dated 22.11.2012 to the 2nd and 3rd respondents requesting to implement the order as directed. A copy of the representation dated 22.11.2012 is produced as **Annexure-S**. As the respondents did not take any action, the petitioner submitted one more representation dated 07.03.2013. A copy of the same is herewith produced as **Annexure-T**. Since there was no response from the respondents, the petitioners approached this Hon'ble Court by preferring contempt petition in C.C.C. No.728-732/2013 (Civil). In the meantime the 2nd respondent accorded approval to the seniority list dated 28.12.2012 by an order dated 27.05.2013. A copy of the seniority list and the 2nd respondent approval is herewith produced as **Annexure-U**. Therefore, upon submission of the 2nd respondent, stating that there is substantial compliance of the order of this Hon'ble Court, the court was pleased to drop the contempt proceedings by an order dated 13.06.2013. A copy of the order is herewith produced as **Annexure-V**. While disposing off the contempt petitions, the court made an observation that "*any other grievance of the complainants has to be worked out in an appropriate forum and not in this contempt petition*".

22. It is further submitted that, along with the fresh seniority list the 3rd respondent also communicated to the 2nd respondent, a proposal for effecting promotions to the petitioners with retrospective effect dated from which the date on which one of the juniors to the petitioners was given promotion and suggested to implement the same. A copy of the proposal is herewith produced as Annexure-W. But the 2nd respondent never adverted to the request. But contrary to this, the 2nd respondent issued endorsements to the petitioners No.4, 6 and 7, stating that *"unless and until you point out about your rights to promote to any higher cadre with retrospective effect under the law, the university is not in a position to consider your case for any promotion"*. Copies of endorsements issued by the 2nd respondent dated 12.07.2013 is herewith produced as Annexures-X, X1 and X2 respectively.

23. Being aggrieved by the said endorsements the petitioners having left with no other alternative and efficacious remedy are before this Hon'ble Court on the following among other grounds.

24. It is submitted that, the petitioners have not filed any other Writ Petition or any other case, either before this Hon'ble Court or before any other forum on the same cause of action.

GROUNDS

25. Petitioners 1, 2, 3 and 5 are retired from service of the 3rd respondent. If the order of this Hon'ble Court had been implemented immediately after the disposal of appeals the rank and file of these petitioners would have been different and as a consequence the consequential benefit would also be different. It would have resulted in creating a great difference in their pensionary benefits also. Since these petitioners have not been given promotion, they retired as Scientist-3 only and now they are getting the pension relevant to that post.

26. The petitioner No.4 is working as Joint Director and also in charge of the post of Director. The petitioner No.6 is working as Deputy Director and the petitioner No.7 is working as Joint Director in the 3rd respondent institute. Since, Dr.R.Lakshminarayana who happens to be junior in the seniority, was given promotion to different cadres in the service, the petitioners are also entitled for promotion to the post of Scientist-3 w.e.f. 13.06.1987, scientist-4/ Joint Director w.e.f. 01.03.1993 and to the post of Director w.e.f. 07.11.1997. Since petitioners No.1, 2, 3 and 5 are retired from service, they are entitled for proforma promotion and their pay and pension have to be fixed accordingly. Other petitioners being in service, they have to be given by creating supernumerary posts in the cadre of Director.

27. According to "Next below Rule" under Rule 60 of the Karnataka Civil Services Rules, the petitioners are entitled for promotion with retrospective effect from the date on which their immediate Junior was promoted the Rule 60 reads as follows;

Rule 60:

When, a person in a post (whether within the cadre of his service or not) is for any reason prevented from officiating in his turn in a post on a higher scale or grade borne on the cadre of the service to which he belongs, he may be authorised by special order of the appropriate authority proforma officiating promotion into such scale or grade and thereupon be granted the pay of that scale or grade if that be more advantageous to him, on each occasion on which the person immediately junior to him in the cadre of his service (or if that person has been passed over for passed over for reasons of inefficiency or unsuitability or because he is on leave or serving outside the ordinary line or foregoes officiating promotion of his own volition to that scale or grade, then the person next junior to him not so passed over) draws officiating salary in that scale or grade:

The Rule is very clear that a person in a post in is for any reason prevented from officiating in his turn in a post on a higher scale, he may be authorized by Special order of the appropriate authority proforma officiating promotion into such scale or grade.

Therefore, the petitioners are entitled for promotion with retrospective effect.

28. By the inaction and non implementation of the order of this Hon'ble Court, the petitioners were deprived of all the opportunities which were thrown open to them to apply and complete for the senior positions in the Institute as and when it was advertised.

29. The reliefs sought for by the petitioners in W.P.No.4183-4186/1998 c/w W.P.Nos.3863-3865/1998, were as follows;

- i) *To Quash the seniority list of Scientists/ Deputy Directors prepared and published by the Institute in No.IAH/EST/ JESTHA/97-98, dated 30.12.1997 as illegal and void ;*
- ii) *direct the institute to prepare and publish a final seniority list of Scientists Deputy Directors/Scientist-3 by treating respondents 3 to 9 as being juniors to the petitioner; and*
- iii) *direct the Institute to grant promotion to the petitioners to the post of Scientist -3 w.e.f. 13.6.1987, Scientist-4 / Joint Director w.e.f. 1.3.1993 and Director w.e.f. 7.11.1997, the date on which their immediate junior*

Dr.R.Lakshminarayana was promoted with all consequential service and monetary benefits.

On the ground that Dr.R.Lakshminarayana was junior to the petitioners and therefore the same promotional benefit given to him must also be extended to the petitioners with all consequential benefits. This Hon'ble Court was pleased to allow the petition holding that Dr.R.Lakshminarayana was junior to petitioners. Para-28 of the judgment which reads as follows;

In so far as the first contention canvassed by learned counsel for petitioner is concerned, there cannot be any dispute. If the respondents had been deputed to any department or organization under the administrative control of the same employer and absorbed thereafter except if the rules or regulations otherwise provide, their past services are bound to be taken into consideration for computing their seniority in the transferred department but if the employer is different as in the present case, it is difficult to accept the proposition. If a person working in Government service is deputed to work in a Corporation, autonomous bodies or Societies with an option to him to come back to the parent department, but if he chooses for absorption of his service in the deputed post, then he should necessarily forego his services in the Government department. In the present case, respondents were in the government service, when the

first respondent-society was formed. Their services were deputed to the society. They were given notice to exercise their option either to come back to the parent department or for absorption in the deputed post and place. They consciously opted for absorption of their services in the respondent-society. In my considered opinion, their past services in the State Government cannot be taken into consideration for the purpose of computing their seniority in the deputed place which is under the administrative control of a different employer altogether.

Therefore, the petitioners are entitled for retrospective promotion with all consequential benefits.

30. The case of the petitioners is that they have been denied promotion by passing over them on extraneous consideration at proper time. Petitioners had right to be considered for promotion on the dates when an officer who ought to have been below the rank in seniority had been promoted. Therefore, the petitioners cannot be denied retrospective promotion with consequential benefit for the reason that they have not been shouldered with the responsibility. The petitioners have been fighting the litigation for no fault of them and never declined to shoulder the responsibility.

31. After disposal of all the writ appeals which were either filed by the Institute or other private respondents, the 2nd and 3rd respondents were duty bound to implement the order of this Hon'ble Court which they chose to ignore. Now the respondents have no choice except giving retrospective promotion to petitioners.

PRAYER

Wherefore, the petitioners most humbly pray that this Hon'ble Court be pleased to;

- (a) Issue an order or direction in the nature of certiorari by quashing the endorsement/Note dated 12.07.2013 in No.R/Rett/WP No.2522/45293-99/2013-14/1839, vide Annexure-X, X1 and X2, issued by the 2nd respondent;
- (b) Issue an order or direction in the nature of mandamus directing the 2nd respondent to give retrospective promotion to the petitioners to different cadres w.e.f the date on which their immediate Juniors were promoted to different cadres, by creating supernumerary posts ;
- (c) Issue an order or direction in the nature of mandamus directing the 2nd respondent grant all consequential benefits, refixation of pay and pension as the case may be, arrears of salary to

the petitioners as a consequence to the grant of 2nd prayer ;

- (d) Pass such other order or orders, as the petitioners are entitled to in the facts and circumstances of the case, including the costs of the proceedings in the interest of justice and equity.

Place: Bangalore

Date:

12/9/13

Advocate for Petitioner
(H. Mohan Kumar)

Address for Service:

H.MOHAN KUMAR,
Advocate,
No.1-4/3, 2nd Floor,
Sujatha Complex,
Gandhinagar, 1st Main Road,
Bangalore-560009
Mob: 9448523792

IN THE HIGH COURT OF KARNATAKA
AT BANGALORE

W.P.NO. /2013

BETWEEN

Dr.S.R.Jayakumar
and others

...Petitioners

AND

State of Karnataka and others

...Respondents

VERIFYING AFFIDAVIT

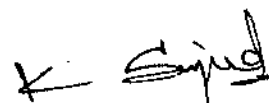
I, Dr.K.Sripad, S/o Krishnarao.R. Aged 51 years, Working as Deputy Director, Institute of Animal Health and Veterinary Biologicals, Hebbal, Bangalore-24, do hereby solemnly affirm and state on oath as follows;

1. I am the 6th petitioner in the above Writ Petition and I am well aware of the facts of the case. Hence I am swearing to this affidavit on my behalf and also on behalf of other petitioners as I have been authorized to do so.
2. I state that the statements made in Para-1 to 31 are true and correct to the best of my knowledge, information and belief.
3. I state that the Annexures-A to W are true copies of the originals and Annexure-X, X1 and X2 are the originals.

Identified by me,

Advocate
Bangalore
Date:

No. of Corrections;


DEPONENT

ANNEXURE-A

ଅଧ୍ୟକ୍ଷ

ವಿಷಯ: ಅಂತಿಮ ಚರ್ಚೆಯ ಕಾರ್ಯಕ್ರಮ

అర్థం: సుత్తాల్లో నయ్య : దాదాపు : 97 : 98
0.16.8.97

[illegible]

1) ವರ್ಷೋತ್ಸವ, ನೇಪಾಳ ಸರ್ವಜನಿಕ ಕುತೂಹಲಕರವಾದ ಘಟನೆಯಾದ ಸರ್ವಜನಿಕ ಆಧಿಕಾರಗಳ : ನಾಕಂಡ ವಹಿ, ಮುಖ್ಯವಾಗಿ ಜ್ಞಾನೋತ್ಸವ, ಆಚರಣಾತ್ಮಕ ಅಲಂಕಾರದಲ್ಲಿ ನಿರೂಪಿಸಿದ ವಹಿ, ಮುಖ್ಯವಾಗಿ ಜ್ಞಾನೋತ್ಸವ, ಮುಖ್ಯವಾಗಿ ಜ್ಞಾನೋತ್ಸವ, ಮುಖ್ಯವಾಗಿ ಜ್ಞಾನೋತ್ಸವ

2) ಕಡ್ಡು ಗಿಣಿ ಪುರುಷನು ಅರಸರೊಡನೆ ಸಂವತ್ಸರ ವ್ಯವಸ್ಥೆಯಿಂದ
ವಿಶ್ವನಗರಾಂಡ' ೩ : ದರ್ಜೆ ನೌಕರರನ್ನು ೬. 1. 4. 12 ರಾಗ
ಪುಣ್ಯವಾಗಿರುತ್ತದೆ.

3. ರೈಲ್ವೇ ಷಾಗಡಿಯಲ್ಲಿ ವೇತನ ಶ್ರೇಣಿಯನ್ನು ವೇತನ ಸಂಹರಣಿ
ಬದಿಕಾರಿಗಳ ವಲಯವನ್ನು ಸಕ್ರಮಣಿಸಿ ಧನದಿಂದ ವೇತನದೊಂದಿಗೆ
ವರಿಗವಲಾಗಿರುತ್ತದೆ.

4) ಸಂಖ್ಯೆ 300, 30.11.87 ರಂದು ಪರಿಶೀಲಿಸಿದಾಗ

5) 1952 ರಲ್ಲಿ ಜನಾಭಿಮಾನಿಗಳಿಂದ ಪ್ರಯತ್ನಗಳಾದರೂ
ಪ್ರಜಾಪೀಠದ ಸ್ಥಾಪನೆಯಾಗದೆ ಇದ್ದು, ಇದರ ಸ್ಥಾಪನೆಯಾಗುವ
ವರೆಗೆ ಇದರ ಸ್ಥಾನವು ಇದ್ದಂತೆ.

[illegible][illegible]

16

ಪ್ರಶ್ನೆ

6

ಕ್ರಮ ಸಂಖ್ಯೆ (1)	ಹೆಸರು (2)	ಜಿಲ್ಲೆಯ ದಿನಾಂಕ (3)	ಸಂಖ್ಯೆ:ಪದಾಧಿಕಾರಿ ಸೇವಾ ದಿನಾಂಕ (4)	ಆಯ (5)
1	ಚಾ:ವಿ.ಎಂ.ಕುಂಟೆ	10-10-39	2-6-79(ಸಂಖ್ಯೆ)	ಸಂ.ನಿ. ಆ 2-8-79 ಜಂ.ನಿ. ಆ 24-2-86 ನಿರ್ದೇಶಕರಾಗಿ 23-3-92
2	ಚಾ:ವಿ.ಎಂ.ಕುಂಟೆ(ನಿವೃತ್ತ)	3-2-35	27-7-60(ಪದಾಧಿಕಾರಿ)	ಪಂ.ಮಾ. ಆ 27-7-60 ಸಂ.ನಿ. ಆ 1-12-71 ಸಂ.ನಿ. ಆ 30-11-83 ಜಂ.ನಿ. ಆ 24-2-86
3	ಚಾ:ವಿ.ಎಂ.ಕುಂಟೆ(ನಿವೃತ್ತ)	15-1-39	20-12-63(ಪದಾಧಿಕಾರಿ)	ಸಂ.ನಿ. ಆ 5-1-72 ಸಂ.ನಿ. ಆ 10-2-86 ಜಂ.ನಿ. ಆ 18-11-92
4	ಚಾ:ವಿ.ಎಂ.ಕುಂಟೆ(ನಿವೃತ್ತ)	5-7-40	6-8-64(ಪದಾಧಿಕಾರಿ)	ಸಂ.ನಿ. ಆ 29-1-73 ಸಂ.ನಿ. ಆ 13-6-87
5	ಚಾ:ವಿ.ಎಂ.ಕುಂಟೆ(ನಿವೃತ್ತ)	25-1-40	17-12-64(ಪದಾಧಿಕಾರಿ)	ಸಂ.ನಿ. ಆ 28-5-73 ಸಂ.ನಿ. ಆ 13-6-87 ಜಂ.ನಿ. ಆ 1-3-93
6	ಚಾ:ವಿ.ಎಂ.ಕುಂಟೆ(ನಿವೃತ್ತ)	7-9-40	7-8-64(ಪದಾಧಿಕಾರಿ)	ಸಂ.ನಿ. ಆ 10-12-73 ಸಂ.ನಿ. ಆ 13-6-87
7	ಚಾ:ವಿ.ಎಂ.ಕುಂಟೆ(ನಿವೃತ್ತ)	14-1-43	4-7-65(ಪದಾಧಿಕಾರಿ)	ಸಂ.ನಿ. ಆ 10-12-73 ಸಂ.ನಿ. ಆ 13-6-87
8	ಚಾ:ವಿ.ಎಂ.ಕುಂಟೆ(ನಿವೃತ್ತ)	19-12-43	28-7-66(ಪದಾಧಿಕಾರಿ)	ಸಂ.ನಿ. ಆ 10-12-73 ಸಂ.ನಿ. ಆ 13-6-87
9	ಚಾ:ವಿ.ಎಂ.ಕುಂಟೆ(ನಿವೃತ್ತ)	26-9-41	19-1-66(ಪದಾಧಿಕಾರಿ)	ಸಂ.ನಿ. ಆ 10-12-73 ಸಂ.ನಿ. ಆ 13-6-87
10	ಚಾ:ವಿ.ಎಂ.ಕುಂಟೆ(ನಿವೃತ್ತ)	22-10-38	31-1-68(ಪದಾಧಿಕಾರಿ)	ಸಂ.ನಿ. ಆ 10-12-73 ಸಂ.ನಿ. ಆ 13-6-87
11	ಚಾ:ವಿ.ಎಂ.ಕುಂಟೆ(ನಿವೃತ್ತ)	28-7-41	28-2-69(ಪದಾಧಿಕಾರಿ)	ಸಂ.ನಿ. ಆ 10-12-73 ಸಂ.ನಿ. ಆ 13-6-87
12	ಚಾ:ವಿ.ಎಂ.ಕುಂಟೆ(ನಿವೃತ್ತ)	18-5-44	7-11-66(ಪದಾಧಿಕಾರಿ)	ಸಂ.ನಿ. ಆ 10-12-73 ಸಂ.ನಿ. ಆ 13-6-87
13	ಚಾ:ವಿ.ಎಂ.ಕುಂಟೆ(ನಿವೃತ್ತ)	7-1-40	12-10-67(ಪದಾಧಿಕಾರಿ)	ಸಂ.ನಿ. ಆ 10-12-73 ಸಂ.ನಿ. ಆ 13-6-87
14	ಚಾ:ವಿ.ಎಂ.ಕುಂಟೆ(ನಿವೃತ್ತ)	20-7-54	13-12-79(ಸಂಖ್ಯೆ)	ಸಂ.ನಿ. ಆ 13-12-79 ಸಂ.ನಿ. ಆ 1-3-93
15	ಚಾ:ವಿ.ಎಂ.ಕುಂಟೆ(ನಿವೃತ್ತ)	4-3-43	27-6-68(ಪದಾಧಿಕಾರಿ)	ಸಂ.ನಿ. ಆ 27-5-80 ಸಂ.ನಿ. ಆ 1-3-93
16	ಚಾ:ವಿ.ಎಂ.ಕುಂಟೆ(ನಿವೃತ್ತ)	1-8-44	22-10-69(ಪದಾಧಿಕಾರಿ)	ಸಂ.ನಿ. ಆ 14-9-84 ಸಂ.ನಿ. ಆ 1-3-93
17	ಚಾ:ವಿ.ಎಂ.ಕುಂಟೆ(ನಿವೃತ್ತ)	2-12-47	6-5-85(ಸಂಖ್ಯೆ)	ಸಂ.ನಿ. ಆ 6-5-85 ಸಂ.ನಿ. ಆ 1-3-93
18	ಚಾ:ವಿ.ಎಂ.ಕುಂಟೆ(ನಿವೃತ್ತ)	9-12-45	30-4-85(ಸಂಖ್ಯೆ)	ಸಂ.ನಿ. ಆ 30-4-85 ಸಂ.ನಿ. ಆ 1-3-93
19	ಚಾ:ವಿ.ಎಂ.ಕುಂಟೆ(ನಿವೃತ್ತ)	19-5-48	2-5-85(ಸಂಖ್ಯೆ)	ಸಂ.ನಿ. ಆ 2-5-85 ಸಂ.ನಿ. ಆ 1-3-93
20	ಚಾ:ವಿ.ಎಂ.ಕುಂಟೆ(ನಿವೃತ್ತ)	29-7-46	13-10-70(ಪದಾಧಿಕಾರಿ)	ಸಂ.ನಿ. ಆ 17-7-86 ಸಂ.ನಿ. ಆ 1-3-93

(1)	(2)	(3)	(4)	(5)
21.	ಡಾ: ಎಂ. ಡಿ. ಪಂಕಜೇಶ	7-5-61	29-9-86	ವಿಜ್ಞಾನ-1 ಅಕ್ಷಿ ದಿ: 20-9-86
22.	ಡಾ: ಎನ್. ಜಿ. ರಮೇಶಬಾಬು	5-5-60	20-9-86	20-9-86
23.	ಡಾ: ಕೆ. ಶ್ರೀಪಾದ	10-6-62	20-10-86	20-10-86
24.	ಡಾ: ಒ. ಗಿರೀಧರ	23-9-58	5-1-87	5-1-87
25.	ಡಾ: ಎನ್. ವಿ. ಸುಬ್ರ. ಮುಷ್ಯಂ	26-2-54	22-1-87	22-1-87
26.	ಡಾ: ಎಂ. ಶೋಭಾರಾಜ	5-7-61	2-8-88	2-8-88
27.	ಡಾ: ಎನ್. ಎಂ. ಚೈರೇಗೌಡ	22-7-60	23-9-88	23-9-88
28.	ಡಾ: ರವೀಂದ್ರ ಹೆಗ್ಡೆ	6-4-63	29-9-88	29-9-88
29.	ಡಾ: ಹೆಚ್. ಕೆ. ಮುನಿಯಯ್ಯಪ್ಪ	2-7-63	2-9-92	2-9-92
30.	ಡಾ: ಜಿ. ಕೆ. ಕಂದ್ರಕಲಾ	26-7-64	2-9-92	2-9-92
31.	ಡಾ: ಬಿ. ವೈ. ಶ್ರೀಧರ	4-2-63	2-9-92	2-9-92
32.	ಡಾ: ಅಶಾ ಮುನಿಯಯ್ಯ	30-9-62	23-5-94	23-5-94
33.	ಡಾ: ವಿ. ಆರ್. ಗಿರೀಶ	29-6-64	23-6-94	23-6-94
34.	ಡಾ: ಶ್ರೀಕಾಂತ ಕೊವಳ್ಳಿ	24-4-64	23-6-94	23-6-94

ನಿರ್ದೇಶಕರು
ಪುಸ್ತಕ ಅಭಿವೃದ್ಧಿ ವಿಭಾಗ, ಕೆ.ಎ.ಸಿ.
ಹೆಚ್.ಎಸ್.

Typed copy of Annexure- A

ಪಶು ಆರೋಗ್ಯ ಮತ್ತು ಜೈವಿಕ ಸಂಸ್ಥೆ,
ಹೆಬ್ಬಾಳ, ಬೆಂಗಳೂರು-24

ಸಂಖ್ಯೆ: ಐಎಹೆಚ್: ಇಎಸ್ಸಿ:ಜೈಪ್ಪೆ: 97-98 ದಿ: 30.12.97
ಕ.ಆ.ಸಂಖ್ಯೆ: 256:97.98

ಕಛೇರಿ ಆದೇಶ

ವಿಷಯ: ಅಂತಿಮ ಜೇಷ್ಠತಾ ಪಟ್ಟಿ ಪ್ರಕಟಣೆ ಬಗ್ಗೆ
ಉಲ್ಲೇಖ: ಸುತ್ತೋಲೆ ಸಂಖ್ಯೆ: ಐಎಹೆಚ್: ಇಎಸ್ಸಿ:ಜೈಪ್ಪೆ: 97-98 ದಿ:
16.08.97

ಮೇಲ್ಕಂಡ ಸಂಸ್ಥೆಯು ದಿ: 16.08.97 ರ ಸುತ್ತೋಲೆಯ ಪ್ರಕಾರ
ತಾತ್ಕಾಲಿಕ ಜೇಷ್ಠತೆ ಪಟ್ಟಿಯನ್ನು ಪ್ರಕಟಿಸಿ ಆಕ್ಷೇಪಣೆ:
ಅಭ್ಯಂತರಗಳೇನಾದರೂ ಇದ್ದಲ್ಲಿ ಅಪ್ಪಗಳನ್ನು ಲಿಖಿತ ರೂಪದಲ್ಲಿ ಕೊಡಲು
ತಿಳಿಸಲಾಗಿತ್ತು. ಈ ವಿಚಾರವಾಗಿ ಬಂದ ಎಲ್ಲಾ ಲಿಖಿತ
ಆಕ್ಷೇಪಣೆಗಳನ್ನು /ಅಭ್ಯಂತರಗಳನ್ನು ಕೂಲಂಕುಷವಾಗಿ ಪರಿಶೀಲಿಸಿ
ನಿಯಮ 1957 ಮತ್ತು ಇದಕ್ಕೆ ಸಂಬಂಧಪಟ್ಟಂತೆ ನಿಯಮಗಳು, ಇತರೆ
ಪ್ರಕಾರ ನಿರ್ಣಯಗಳಂತೆ ಕೆಳಗಿನ ಅಂಶಗಳನ್ನು ಗಣನೆಗೆ ತೆಗೆದುಕೊಂಡು
ಈ ಕಛೇರಿ ಆದೇಶಕ್ಕೆ ಅಡಕವಾಗಿಸಿರುವ ಅಂತಿಮ ಜೇಷ್ಠತಾ ಪಟ್ಟಿಯನ್ನು
ಬಿಡುಗಡೆ ಮಾಡಲಾಗಿದೆ.

1. ಸಂಸ್ಥೆಯು ಸೇವೆಗೆ ಸಾರ್ವಜನಿಕ ಹಿತದೃಷ್ಟಿಯಿಂದ
ವಿಲೀನಗೊಂಡಿರುವ ಸರ್ಕಾರಿ ಅಧಿಕಾರಿಗಳು/ನೌಕರರ ಪದಕ್ರಮ
ಪಟ್ಟಿಯ ಜೇಷ್ಠತೆಯನ್ನು ಅವರ ಮಾತೃ ಇಲಾಖೆಯಲ್ಲಿ ನೀಡಲಾದ
ಪದಕ್ರಮ(ಗ್ರೇಡೇಷನ್ ಲಿಸ್ಟ್) ಪಟ್ಟಿಗನುಗುಣವಾಗಿ ಜೈಷ್ಠತೆಗಾಗಿ
ಪರಿಗಣಿಸಲಾಗಿದೆ.
2. ಇದೇ ರೀತಿ ಪಶುಪಾಲನಾ ಇಲಾಖೆಯಿಂದ ಸಂಸ್ಥೆಗೆ ಸ್ವ
ಇಚ್ಛೆಯಿಂದ ವಿಲೀನಗೊಂಡ 'ಡಿ' ದರ್ಜೆ ನೌಕರರನ್ನು ದಿ:
01.04.92 ರಿಂದ ಜೈಷ್ಠತೆಗೆ ಪರಿಗಣಿಸಲಾಗಿದೆ.
3. ಯೋಜನೆಗಳಡಿಯಲ್ಲಿ ವೇತನ ಶ್ರೇಣಿಯಲ್ಲಿ ನೇಮಿಸಲ್ಪಟ್ಟ ನೌಕರರ
ಅಧಿಕಾರಿಗಳ ಸೇವೆಯನ್ನು ಸಕ್ರಮಗೊಳಿಸಿದ ದಿನದಿಂದ
ಜೈಷ್ಠತೆಯನ್ನು ಪರಿಗಣಿಸಲಾಗಿದೆ.

4. ಸಂಸ್ಥೆಯಲ್ಲಿ 30.11.87 ರಂದು ವಿಲೀನಗೊಂಡ ನೌಕರರ ಜೇಷ್ಠತೆಯನ್ನು ಅವರುಗಳ ಪಯಸ್ಸಿನ ಆಧಾರದ ಮೇಲೆ ನಿರ್ದರಿಸಲಾಗಿದೆ.
5. 1992 ರಲ್ಲಿ ಕೆಲಸಕ್ಕೆ ನೇಮಕಾತಿ ಮಾಡಿಕೊಂಡ ಪ್ರಯೋಗಾಲಯ ಸೇವಕರ ಜೇಷ್ಠತೆಯನ್ನು ಸಂದರ್ಶನ ಸಮಿತಿಯವರು ಅವರಿಗೆ ನೀಡಿದ ಡ್ಯಾಂಕಿಂಗ್ ಪ್ರಕಾರ ನಿರ್ದರಿಸಲಾಗಿದೆ.
6. ವೇತನ ಶ್ರೇಣಿಯಲ್ಲಿ ತಾತ್ಕಾಲಿಕವಾಗಿ ನೇಮಕಾತಿಗೊಂಡ ಅಧಿಕಾರಿಯ ಜೇಷ್ಠತೆಯನ್ನು ಕನ್ಸಲ್ಟೇಟಿಡ್ ವೇತನ ನೀಡಿ ನೇಮಕಾತಿ ಮಾಡಿಕೊಂಡಿರುವ ಅಧಿಕಾರಿಗಿಂತ ಜೇಷ್ಠತೆಗೊಂದು ಪರಿಗಣಿಸಲಾಗಿದೆ.

ಸಹಿ/-

ನಿರ್ದೇಶಕರು

ಪಶು ಆರೋಗ್ಯ ಮತ್ತು ಜೈವಿಕ ಸಂಸ್ಥೆ
ಹೆಬ್ಬಾಳ, ಬೆಂಗಳೂರು.

ವಿಜ್ಞಾನಿಗಳ ಅಂತಿಮ ಜೇಷ್ಠತಾ ಪಟ್ಟಿ

ಕ್ರಮ ಸಂಖ್ಯೆ	ಹೆಸರು	ಹುಟ್ಟಿದ ದಿನಾಂಕ	ಸಂಸ್ಥೆ/ಪ್ರವಾಸ ನೇಮಕ ನೇರಿಸಿದ ದಿನಾಂಕ	ಪರಾ
(1)	(2)	(3)	(4)	(5)
1	ಡಾ. ಟಿ. ಗೋಪಾಲ್	10.10.39	02.08.79 (ಸಂಸ್ಥೆ)	ಉ.ನಿ. ಆರ್. 02.08.1979 ಜನಿ: ಆರ್. 24.02.86 ನಿರ್ದೇಶಕರಾಗಿ: 23.03.92
2	ಡಾ. ಎಂ. ಅನಂತ್ (ನಿವೃತ್ತಿ)	03.02.35	27.07.60 (ಪ್ರವಾಸ)	ಪವೈ ಆರ್. 27.07.60 ಸನಿ ಆರ್. 01.12.71 ಉ.ನಿ.ಆರ್. 30.11.83 ಜನಿ ಆರ್. 24.02.86
3	ಡಾ. ಆರ್. ಪಿ. ಶ್ರೀನಿವಾಸ (ನಿವೃತ್ತಿ)	15.01.39	20.12.63 (ಪ್ರವಾಸ)	ಸ.ನಿ. ಆರ್. 05.1.72 ಉ.ನಿ. ಆರ್. 10.02.86 ಜ.ನಿ.ಆರ್.

4	അ.വ.ജി.സി.കോഴ്സ്	05.07.40	06.06.64(പ്രമാദ)	ജ.സി.ഒറി 29.11.73 13.06.87	18.11.92
5	അ.ഒ.പി.സി. സെന്ററൽ	25.01.40	17.12.64(പ്രമാദ)	ജ.സി.ഒറി 28.05.73 13.06.87	01.03.93
6	അ.ജി.ജി.സി.കോളേജ്	07.09.40	07.08.64(പ്രമാദ)	ജ.സി.ഒറി 10.12.73 13.06.87	
7	അ.ഡി.സി.സി.സി.സി.	14.01.43	04.07.65(പ്രമാദ)	ജ.സി.ഒറി 10.12.73 13.06.87	
8	അ.ഡി.സി.സി.സി.സി.	19.12.43	28.07.66(പ്രമാദ)	ജ.സി.ഒറി 10.12.73 13.06.87	
9	അ.ഡി.സി.സി.സി.സി.	26.09.41	19.01.66(പ്രമാദ)	ജ.സി.ഒറി 10.12.73 13.06.87	
10	അ.ഡി.സി.സി.സി.സി. (സി.സി.സി.)	22.10.38	31.01.68(പ്രമാദ)	ജ.സി.ഒറി 10.12.73 13.06.87	
11	അ.ഡി.സി.സി.സി.സി.	28.07.41	28.02.69(പ്രമാദ)	ജ.സി.ഒറി 10.12.73 13.06.87	
12	അ.സി.സി.സി.സി.സി.	18.05.44	07.11.66(പ്രമാദ)	ജ.സി.ഒറി 10.12.73 13.06.87	

13	ಡಾ.ವಿನ್.ಸುರೇಶ್	07.01.40	12.10.67(ಪಪಾಇ)	ಸ.ನಿ.ಆಗಿ 13.12.77 ಉ.ನಿ.ಆಗಿ 01.03.93
14	ಡಾ.ಸಿ.ರೇಣುಕಾಪ್ರಸಾದ್	20.07.54	13.12.79(ಪಪಾಇ)	ಸ.ನಿ.ಆಗಿ 13.12.77 ಉ.ನಿ.ಆಗಿ 01.03.93
15	ಡಾ.ಸೈಯದ್ ಮುಕ್ತಾರ್ ಅಹಮ್ಮದ್	04.03.43	27.06.68 (ಸಂಸ್ಥೆ)	ಸ.ನಿ.ಆಗಿ 27.05.80 ಉ.ನಿ.ಆಗಿ 01.03.93
16	ಡಾ.ಜಿ.ವಿನ್.ಶೀನಿವಾಸಲು	01.08.44	22.10.69(ಪಪಾಇ)	ಸ.ನಿ.ಆಗಿ 14.09.84 ಉ.ನಿ.ಆಗಿ 01.03.93
17	ಡಾ.ವಿನ್.ಆರ್.ಜಯಕುಮಾರ್,	02.12.47	06.05.85(ಪಪಾಇ)	ಸ.ನಿ.ಆಗಿ 06.05.85 ಉ.ನಿ.ಆಗಿ 01.03.93
18	ಡಾ.ಎಂ.ಎಂ.ಬಾಬು	09.12.45	30.04.85(ಸಂಸ್ಥೆ)	ಸ.ನಿ.ಆಗಿ 30.04.85 ಉ.ನಿ.ಆಗಿ 01.03.93
19	ಡಾ.ಎಂ.ಎಂ.ಕುಮಾರ್	19.05.48	02.05.85(ಸಂಸ್ಥೆ)	ಸ.ನಿ.ಆಗಿ 02.05.85 ಉ.ನಿ.ಆಗಿ 01.03.93
20	ಡಾ.ಕೆ.ಆರ್.ರಾಮನಾಥ್	29.07.46	13.10.70(ಸಂಸ್ಥೆ)	ಸ.ನಿ.ಆಗಿ 17.07.85 ಉ.ನಿ.ಆಗಿ 01.03.93
21	ಡಾ.ಎಂ.ದಿ.ವೆಂಕಟೇಶ್	07.05.61	20.09.86	ವಿಜ್ಞಾನಿ-1 ಆಗಿ 20.09.86
22	ಡಾ.ವಿನ್.ಜಿ.ರಮೇಶ್ ಬಾಬು	05.05.60	20.09.86	ವಿಜ್ಞಾನಿ-1 ಆಗಿ 20.09.86
23	ಡಾ.ಕೆ.ಶ್ರೀಪಾದ್	10.06.62	20.10.86	ವಿಜ್ಞಾನಿ-1 ಆಗಿ 20.10.86
24	ಡಾ.ಪಿ.ಗಿರಿಧರ್	23.09.58	05.01.87	ವಿಜ್ಞಾನಿ-1 ಆಗಿ 05.01.87
25	ಡಾ.ವಿನ್.ವಿ.ಸುಬ್ರಹ್ಮಣ್ಯಂ	26.02.54	22.01.87	ವಿಜ್ಞಾನಿ-1 ಆಗಿ 22.01.87

26	ಅ.ಎಂ.ಶೋಭಾ	05.07.61	02.08.88	ವಿಜ್ಞಾನ-1	ಆರ್ 02.08.88
27	ಅ.ಎನ್.ಎಂ.ಭೈರೋಡ	22.07.60	23.09.88	ವಿಜ್ಞಾನ-1	ಆರ್ 23.09.88
28	ಅ.ರವೀಂದ್ರ ಹೆಗ್ಡೆ	06.04.63	29.09.88	ವಿಜ್ಞಾನ-1	ಆರ್ 20.09.86
29	ಅ.ಹೆಚ್.ಕೆ.ಮುನಿಯಲ್ಲಪ್ಪ	02.07.63	02.09.92	ವಿಜ್ಞಾನ-1	ಆರ್ 29.09.88
30	ಅ:ಜಿ.ಕೆ.ಚಂದ್ರಕಲಾ	26.07.64	02.09.92	ವಿಜ್ಞಾನ-1	ಆರ್ 02.09.92
31	ಅ.ಎ.ಪಿ.ಪ್ರೀತ್ವರ್ಧನ್	04.02.63	02.09.92	ವಿಜ್ಞಾನ-1	ಆರ್ 02.09.92
32	ಅ.ಅಶಾ ಮುಯ್ಯಣ್ಣಿ	30.09.62	23.05.94	ವಿಜ್ಞಾನ-1	ಆರ್ 23.05.94
33	ಅ.ವಿ.ಆರ್.ಗಿರಿಶ್	29.06.64	23.06.94	ವಿಜ್ಞಾನ-1	ಆರ್ 23.05.94
34	ಅ.ಶ್ರೀಕಾಂತ್ ಕೊಪ್ಪಳಿ	24.04.64	23.06.94	ವಿಜ್ಞಾನ-1	ಆರ್ 23.05.94

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ನಿರ್ದೇಶಕರು

ಪರಂ ಆರೋಗ್ಯ ಮತ್ತು ಜೈವಿಕ ಸಂಸ್ಥೆ
ಹಬ್ಬಾಳ, ಬೆಂಗಳೂರು.

M.A. Venkatesh

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IN THE HIGH COURT OF KARNATAKA AT BANGALORE
DATED THIS THE 6TH DAY OF APRIL 2000

BEFORE

THE HON'BLE MR. JUSTICE H.L. DATTU

WRIT PETITION NO. 2522/1998

BETWEEN:

Dr. C. Renukprasad
s/o late C. Chennaveerappa
43 yrs. Occ: Service
w/a Institute of Animal
Health and Veterinary Bio-
logicals, Hebbal
Bangalore-24. Petitioner.

(By Sri M.R. Achar, Sr. Counsel & Krishna
Dixit, Adv.)

AND:

1. The State of Karnataka
by its Secretary
Dept. of Animal Husbandry
Vidhana Soudha
Bangalore-1.

2. The Institute of Animal
Health and Veterinary
Biologicals, Hebbal
Bangalore-24, repled.
by its Member Secretary/
Director.

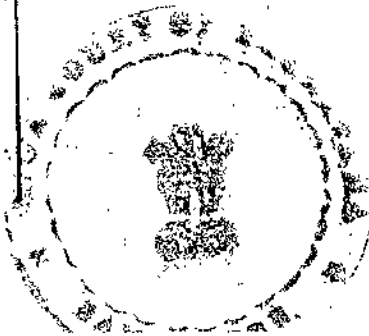
3. Dr. A.G. Gokak
Deputy Director.

4. Dr. G.J. Agnihotri
Deputy Director.

5. Dr. M. Ramaswamy
Deputy Director.

6. Dr. S. Premalatha
Deputy Director.

7. Dr. A.J. Bragita
Deputy Director.



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8. Dr. M. Muddarange Gowda
Deputy Director.

9. Dr. K.L. Revappa
Deputy Director. Respondents.

The respondents 3 to 9 are
in the cadre of Deputy
Director, presently
working in the Institute
of Animal Health and Veteri-
nary Biologicals, Hebbal
Bangalore-24.

(By Sri V.S. Prasad, Adv. for R2.
Sri Udayashankar, GA for R1.
Sri N.B. Bhat, Adv. for R3 to 6
Sri Ananth Mandagi, Adv. for R7
Sri Sridhar, Adv. for R8 and 9)

This W.P. is filed under Arts.226 &
227 of the Constitution of India, praying
to quash Annexure L dated 30.12.1997, etc.

This W.P. having been reserved for
Orders, this day the Court pronounced the
following:

ORDER

Dr. Renuka Prasad, petitioner in this
petition filed under Art.226 of the
Constitution, who is now working as Deputy
Director in the Institute of Animal Health
and Veterinary Biologicals, Hebbal, has
sought for a writ to quash the seniority
list of Deputy Directors prepared and
published by the Institute in No.
IAH/EST/JESTHA/97-98 dated 30.12.1997 as
illegal and void. The consequential prayer



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made is to direct the Institute to prepare and publish a final seniority list of Deputy Directors/Scientist-3 by treating respondents 3 to 9 as being juniors to the petitioner and lastly, for a direction to the Institute to grant promotion to the petitioner to the post of Joint Director/Scientist with effect from 1.3.1993, the date on which his immediate Junior Dr. R. Lakshminarayana was promoted with all consequential service and monetary benefits.

2. First about the Institute:

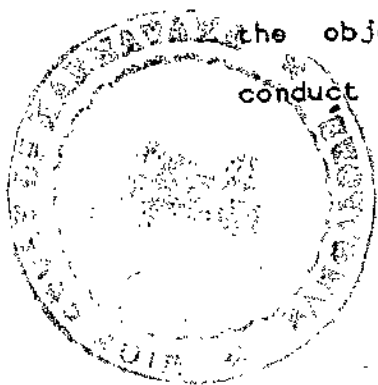
The Mysore Serum Institute was part of Department of Animal Husbandry and Veterinary Sciences of the State of Karnataka. It had a Board of Management consisting of representatives from Karnataka Dairy Development Corporation, Department of Animal Husbandry and Veterinary Services and University of Agricultural Sciences as members. The Commissioner and Secretary to Government, Agriculture and Animal Husbandry Department was its Chairman. The primary object of the Institute was to develop programmes for



giving appropriate animal health coverage to the entire live stock and poultry within the State. The Board of Management for proper and better administration of the Institute in its meeting held on 30th November 1977 resolved to convert the Institute, which was functioning under the Administrative Control of Agriculture and Animal Husbandry Department of Government of Karnataka into a Society. The State of Karnataka by its order dated 7th April, 1978 was pleased to accord sanction for converting the institute into a Society. Pursuant to the permission so granted, the Institute came to be registered under the provisions of Karnataka Societies Registration Act, 1960, with effect from 5.6.1978 and started functioning in the name and style of "Institute of Animal Health and Veterinary Biologicals, Hebbal, Bangalore". The institute/society is fully funded by Government of Karnataka. All Officers and Staff working in the former institute of Government have been continued to work in the Society. Apart from others, the objects of the Society inter alia is to conduct epidemiological survey of various

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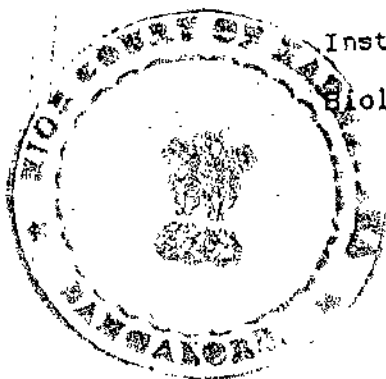


diseases of live stock and poultry and to engage in the production of veterinary biologicals and vaccines. Since the service conditions of the staff working in the society had not been finalised, the Director of the Institute by his letter dated 27.3.1979 requested the State Government to treat the staff working in the Institute as on deputation to the society with effect from 5.6.1978. Pursuant to the request so made, the State Government by its order dated 31.3.1979 was pleased to pass the following order:

"After considering all aspects and pending finalisation of their absorption or repatriation to the parent Department, Government hereby direct that all the Government Officers/officials working in the Institute of Animal Health and Veterinary Biologicals, shall be deemed to have been treated as on deputation to the Society from the date of registration i.e. 5.6.1978 and they are entitled to all the benefits that are available to them in the Government service."

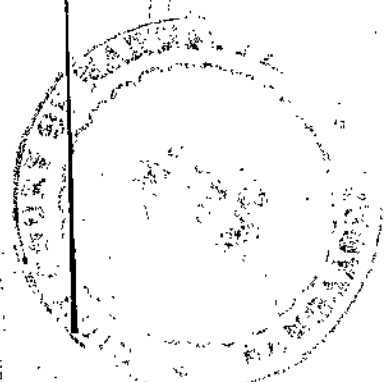
3. About respondents:

Respondents 3 to 9 were working in the Institute of Animal Health and Veterinary Biologicals, which was functioning under



the Administrative control of the Agriculture and Animal Husbandry, Department of Government, having joined service between 1964 to 1967. After conversion of the Institute into a registered society with effect from 5.6.1978, these respondents continued to work in the society in the post earlier held by them. By virtue of the order dated 31.3.1979, pending finalisation of their absorption or repatriation to the parent Department, their services came to be transferred on deputation to the society from the date of its registration. It is pertinent at this stage to mention two aspects. Firstly, on the date of transfer of their service from parent department to the society, they were all working in the post of Asst. Director, which was a Class III post. Secondly, they were governed by Karnataka Animal Husbandry and Veterinary Services (Recruitment) Rules, 1959, and the post of Asst. Directors could be filled under the Rules, 60 percent by promotion from the cadre of Veterinary Inspectors and 40 percent by direct recruitment. The minimum qualification required was only a

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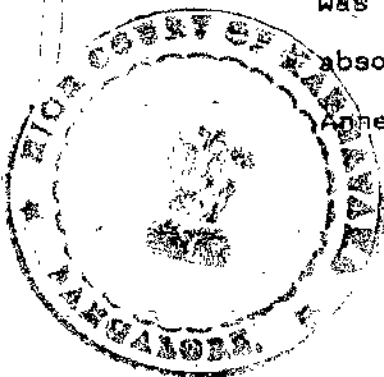


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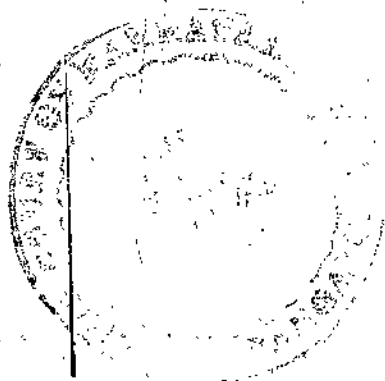
degree in Veterinary Science of a recognised University or a recognised Diploma in Veterinary Sciences or equivalent qualification. It is not in dispute nor it can be disputed that the respondents 3 to 9 had this minimum qualification prescribed under the Rules before they were selected and appointed to the posts of Asst. Director.

4. The State Government, it appears, by its letter No. AAH.243.VET.83 dated 24.10.1983 had directed the employees working in the Institute on deputation to exercise their option for absorption in the Institute or for repatriation to the parent Department. It appears, most of the employees working on deputation had exercised their option for absorption in the Institute including respondents 3 to 9. The State Government basing on the correspondence dated 17.5.1984 and 28.3.1985 of the Director, Institute of Animal Health and Veterinary biologicals was pleased to accord sanction for absorption of the 95 employees noted in the Annexure to the order as permanent



employees of the Institute of Animal Health and Veterinary Biologicals, Hebbal, Bangalore, in the public interest with effect from 1.4.1987 subject to certain conditions by its order No.AAH.20.AWF.85 dated 7.3.1987.

5. The governing council of the Institute in its 74th meeting held on 29.4.1994, in view of the sanction accorded by the State Government for absorption of the employees working in the Institute on deputation with effect from 1.4.1987 resolved to absorb the deputationist to its fold with effect from 5.6.1983 instead of 1.4.1987 subject to all the other conditions mentioned in the Government Order by their order in No. IAH/EST/Absorption/94-95/82 dated 22.6.1994. I will once again revert back to this order while discussing the legal issues canvassed by learned Counsel for petitioner. Having exhausted the facts which are relevant for the purpose of this case in so far as respondents 3 to 9 are concerned, let me now briefly notice the facts in so far as appointment of the



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petitioner in the Institute.

6. About petitioner:

Apart from deputationist, the respondent-Institute had also appointed its own employees. Petitioner was one among them. He was First Class Post Graduate (M.V.Sc) and he was appointed by the respondent-Institute by its order dated 12.12.1979 in the cadre of Asst. Director with the pay scale of Rs.750-1525. He reported for duty in the Institute on 13.12.1979. The respondent-Institute by its order dated 2.4.1982 has declared that the petitioner has successfully completed his period of probation of two years with effect from 12.12.1981. He is promoted to next higher cadre of Deputy Director with effect from 1.3.1993.

7. The State Government by its order dated 4.4.1983, has approved the Draft Service Rules and Regulations for the Institute. These rules are known as "Service Rules and Regulations for Employees of the Institute of Animal Health and Veterinary Biologicals, 1983". These



rules are made applicable to every employee of the Institute, whether he was in service on the date the rules were promulgated or entered the service thereafter, except in the cases of employees on contract basis. The appointing authorities to a post under the Institute will be either the governing council or the Director of the Institute. Rule 2.5.3 provides for Grades in service. The Grades in Technical Service is as under:

GRADE	PAY SCALE
I. Asst. Director/ Scientists(S-I)	Rs.1050-1950
II.Senior Asst. Director/Sci- entist (S-2)	Rs.1200-2175
III.Deputy Direc- tor/Scientist (S-3)	Rs.1725-2350
IV.Joint Director/ Scientist(S-4)	Rs.1950-2450

8. Rule 2.5.4 provides for inter-se-seniority. It says "there will be inter-se-seniority among the members of the service for the purpose of promotion". Rule 2.5.6 provides for 'eligibility'. It envisages that the existing employees of the institute holding scientific and



biological production and other posts of the institute shall become employees of the institute from the date of declaration of their option to serve in the institute, such option being subject to the approval of the 'governing council'. Rule 2.5.7 provides for merit promotion and advance increments. It says that "there shall be a system of merit promotion from the grade to the next higher grade, the same shall be resorted to in accordance with certain well laid down criteria. Granting of advance increments may be sanctioned in the time scale of pay at the time of initial fixation of pay".

9. The Institute has its own Cadre and Recruitment Rules and they are known as "The / Institute of Animal Health and Veterinary Biologicals (Cadre and Recruitment) Rules, 1984. These Rules are not made applicable apart from others to the deputationists.

10. A draft seniority list of Asst. Directors (Scientists-I) working in the Institute was published on 15.4.1986



(Annexure 'A'), wherein the Officers on deputation as well as those Officers, who were directly recruited in the Institute had been included and the seniority of the deputationists had been fixed by taking into account their date of entry into service in the parent Department as well as in the Institute. The seniority list so prepared was objected to by the petitioner by filing his objection/representation dated 23.4.1986, stating that the employees on deputation should not be included in the seniority list and that inclusion would affect the interest of the regular employees of the Institute. The said provisional seniority list was never finalised but the Institute, subject to the claims of the aggrieved persons effected promotions by operating provisional seniority list, thereby promoting the deputationists to the next higher cadre namely, Deputy Director/Scientist (S-2). As I have already noticed, the State Government by its order dated 7.3.1987 had accorded sanction to the Institute to absorb the deputationists as permanent employees of the Institute with effect from

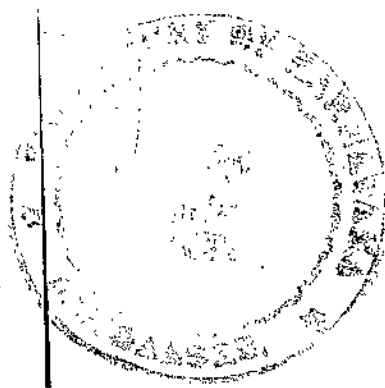
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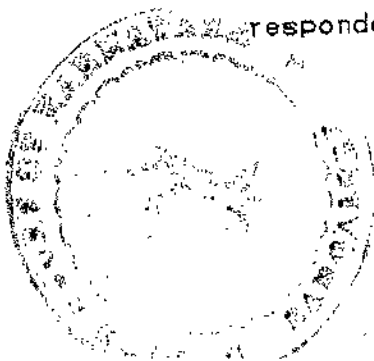
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1.4.1987 subject to certain conditions, even then the Governing Council of the Institute had thought it fit to absorb the deputationist in the institute as permanent employees with effect from 5.6.1983.

11. The respondent-Institute without finalising any one of the provisional seniority list prepared and published, had issued one more provisional seniority list of Deputy Directors dated 28.7.1984 and in that list, petitioner was assigned ranking at Sl.No.10 by placing deputationists, who were all promoted much earlier to the petitioner above him. Even this provisional seniority list came to be objected by the petitioner by stating that since he was directly recruited and appointed in the institute, he should be placed at Sl.No.1 in the draft seniority list. The respondent-Institute after considering the representation of the petitioner and other employees, prepared and published one more provisional seniority list dated 30.6.1997, wherein, petitioner was assigned ranking at Sl.No.4 and on top of all deputationists in the

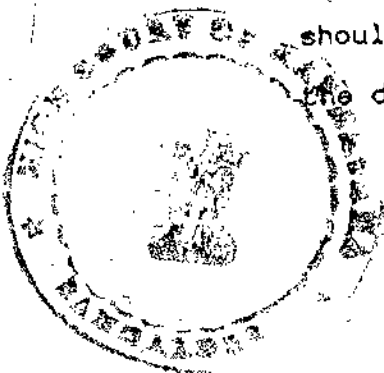


cadre of Deputy Directors. Petitioner had no grievance to this provisional seniority list. The respondent-Institute for the reasons best known to it, did not finalise this provisional seniority list also, but thought it fit to prepare and publish one more provisional seniority list of Deputy Directors dated 16.8.1997, wherein the petitioner was once again assigned ranking at Sl.No.14, by placing all the deputationists, who had been absorbed into the services of the institute as permanent employees above him in the seniority list. Ranking assigned to him in the draft seniority list was also opposed by the petitioner by filing his objections interalia contending therein that the respondent-Institute while considering the seniority of deputationists, their past service in the parent Department should not have been taken into consideration. The objection so filed did not yield any results. But definitely persuaded the Institute to finalise the seniority list of Deputy Directors at the earliest. Infact, for the first time, the respondent-Institute has prepared and



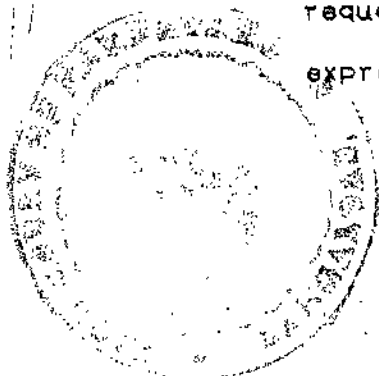
published the final seniority list dated 30.12.1997 (Annexure 'L'), wherein petitioner has been assigned ranking at Sl.No.14, below the respondents 3 to 9. It is the legality or otherwise of this final seniority list, which is questioned by the petitioner in this petition filed under Art.226 of the Constitution inter alia seeking certain reliefs as indicated by me earlier.

12. Reiterating their contention that the ranking assigned to respondents 3 to 9 are all illegal on the ground that they are all deputationists and their past services in the parent department should not have been taken into consideration, the learned Senior Counsel for the petitioner has put forward a further plea that the impugned seniority list dated 30.12.1997 issued by respondent-Institute is in violation of the fundamental principles fixing seniority of deputationists and direct recruits and while fixing the seniority of deputationists, the respondent-Institute should not have taken into consideration the date of entry of the respondents into



service in their parent Department but should have considered their absorption into service in the Institute with effect from 1.4.1987 as fixed by State Government in its order dated 7.3.1987, which accorded approval for absorption of the deputationists as the permanent employees of the respondent-Institute. On this basis, it is contended that the supersession of the petitioner, who was directly recruited and appointed in the respondent-Institute on 13.12.1979 by the respondents 3 to 9, who are the deputationists and who have become permanent employees only on 1.4.1987 is illegal, invalid and wholly arbitrary.

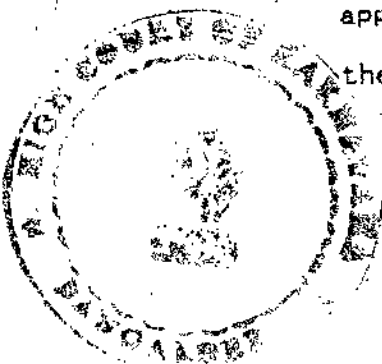
13. Another argument advanced by the petitioner's learned Counsel is that Rule 6 of the Seniority Rules cannot be pressed into service by the respondent-Institute since it only provides for counting the previous service of an Officer transferred from one department to another department either in the public interest or at the request of the public servant and the expression 'transfer' found in the Rule



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should be understood and assigned the same meaning as defined under Rule 8(49) of Karnataka Civil Service Rules and since the respondents 3 to 9 were only deputed from one Department to another Department, the benefit of their previous service in the parent department cannot be counted for the purpose of seniority in the deputed department. Secondly, it is contended that assuming respondent-Institute has adopted Rule 6 of the seniority list, such an adoption is not notified by the respondent-Institute by any mode known to law. Therefore, respondent-Institute cannot take shelter under the Seniority Rules to sustain its arbitrary action in counting previous service of the deputationists in the parent department while preparing the impugned seniority list. The learned Counsel also alleges that in fixing seniority of personnel in the impugned gradation list dated 30.12.1997, even the service rendered by the deputationists is non comparable since respondents 3 to 9 are not qualified to be appointed to the post of Asst. Director in the Institute since the minimum

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qualification prescribed under C & R Rules of the institute for the appointment to the post of Asst. Director by direct recruitment is a degree in Veterinary Science and Ist and IInd Class Master Degree in specified areas for each post. Therefore, it is stated that the action of the respondent-Institute is wholly arbitrary. The learned Senior Counsel also tells me that the deputationist have been treated on par with regular departmental personnel while preparing the seniority list and therefore, the same is in violation of Art.14 and 16 of the Constitution.

14. Lastly, it is contended that the order made by the State Government dated 17.3.1987 was in exercise of its powers under Art.166 of the Constitution clearly demarcating that the deputationist would become regular employees of the respondent-Institute with effect from 1.4.1987 and the governing council for the respondent-Institute could not have altered or modified the same by giving the cut off date as 5.6.1983 relying upon the letter of

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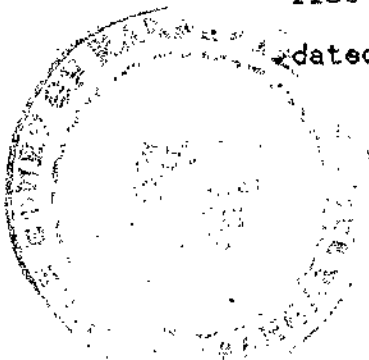
the Secretary of the Department of Animal Husbandry dated 22.3.1994, since the same is not the decision of the State Government. Therefore, it is stated that the order made by the governing council of the Institute dated 22.6.1994 absorbing the deputationists as permanent employees of the Institute of Animal Health and Veterinary Biologicals, Hebbal, in the interest of public service with effect from 5.6.1983 is highly illegal and wholly arbitrary. But curiously, petitioner does not seek any writ against this order.

15. Lastly, it is contended, it is well settled legal position that the deputationist, deputed from other department to the services of the institute should be ranked below all the direct recruits functioning in the Institute. The learned Senior Counsel submits that since the impugned seniority list dated 30.12.1997 has been drawn in contravention of this well settled legal principles, the same should be declared as illegal and unconstitutional.



16. Respondents 3 to 9 have filed their objections resisting the reliefs sought for by the petitioner. In the objections, they contend that the seniority list prepared and published by the respondent-Institute is in accordance with law and does not suffer from any infirmity whatsoever. They further contend that they were working as Asst. Directors in the parent department as early as in the year 1973 and the petitioner, who was appointed as Asst. Director on 13.12.1979 cannot claim seniority above them. Lastly, it is stated that once the employee, who is on deputation is permanently absorbed in public interest, such employee will be entitled to have his service counted from the date of his entry into service. In support of this claim, they entirely rely on Rule 6 of the Seniority Rules.

17. The respondent-Institute has also filed its objections resisting the prayer of the petitioner and also justifying its action in issuing the impugned seniority list of Deputy Directors of the Institute dated 30.12.1997. The Institute asserts



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that the services of the respondents 3 to 9 along with other employees, who were on deputation in the Institute came to be absorbed keeping in view the opinion expressed by the Government in its letter No. AHFF.2.AWF.93 dated 22.3.1994 with effect from 5.6.1983. They also contend that while computing the services of the respondents 3 to 9 for the purpose of seniority, the provisions contained in Rule 6 of the Seniority Rules have been applied since the said Rules have been adopted by the Board by its resolution dated 22.6.1994. On the basis of the aforesaid averments contained in their statement of objections, the respondent-Institute asserts that the petitioner is not entitled to any relief and that the petition deserves to be dismissed.

18. Sri N.B. Bhat, learned Counsel for contesting respondents and Sri V.S. Prasad, learned Counsel for the respondent-Institute sought to justify the impugned seniority list on the lines pleaded by them in their respective counter affidavits filed before this Court.

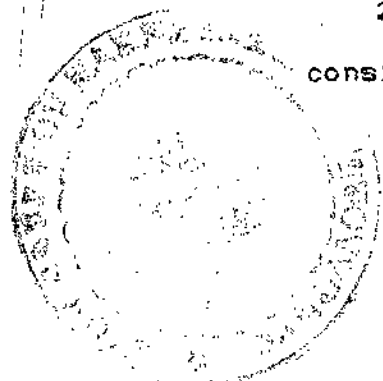


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19. The primary grievance of the petitioner is, the ranking assigned to him in the final seniority list of Deputy Directors prepared and published by the respondent-Institute dated 30.12.1997 treating him as Junior to respondents 3 to 9.

20. Seniority is an important condition of service, for, on seniority depends promotion. Promotion to non-selection posts is earned on the basis of seniority-cum-merit and promotion to selection posts depends on merit-cum-seniority. An employee may not have a right to promotion but definitely has a right to be considered for promotion and such right has intimate connection with his right of seniority. This is one of the reasons why a Government servant feels agitated to the core, when a person, who is not eligible is assigned a higher ranking in the seniority list.

21. To me, it appears, after carefully considering the pleadings and arguments



canvassed by learned Counsel for the parties to the lis, the only question that requires to be considered and decided is the question relating to the inter-se-seniority of direct recruits namely, petitioner and others and respondents 3 to 9, who were brought on deputation and who were ultimately absorbed into its service by the respondent-Society on permanent basis.

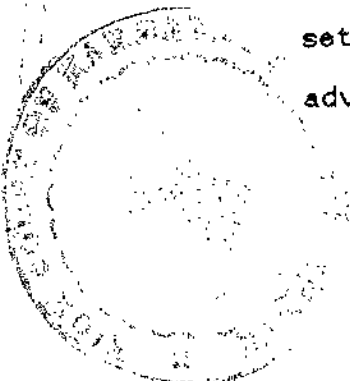
22. I think, to answer the only question raised, the meaning of the expression "deputation" and "deputationist" requires to be noticed. In my opinion, these expression have now well explained by Apex Court in its several decisions. Instead of burdening the order with several case laws, let me just notice the latest view expressed by Apex Court on the meaning of these expressions. The Apex Court in the case of STATE OF PUNJAB VS.INDER SINGH reported in 1997(8) SCC 372 was pleased to observe:

"18. The concept of "deputation" is well understood in service law and has a



recognised meaning.
 "Deputation" has a different connotation in service law and the dictionary meaning of the word "deputation" is of no help. In simple words "deputation" means service outside the cadre or outside the parent department. Deputation is deputing or transferring an employee to a post outside his cadre, that is to say, to another department on a temporary basis. After the expiry period of deputation the employee has to come back to his parent department to occupy the same position unless in the meanwhile he has earned promotion in his parent department as per the Recruitment Rules. Whether the transfer is outside the normal field of deployment or not is decided by the authority who controls the service or post from which the employee is transferred. There can be no deputation without the consent of the person so deputed and he would, therefore, know his rights and privileges in the deputation post. The law on deputation and repatriation is quite settled as we have also seen in various judgments which we have referred to above. There is no escape for the respondents now to go back to their parent departments and working there as Constables or Head Constables as the case may be."

23. The entitlement and the service benefits that the deputationist can claim in the transferred department is now well settled by the Supreme Court. Let me just advert to the decision of the Apex Court in



S.S. MOGHE VS. UNION OF INDIA reported in AIR 1981 SC 1445. In the said decision, the Court was pleased to observe that when a new service is proposed to be constituted by the Government, it is fully within its competence to decide as a matter of policy from which personnel required for manning the service to be drawn. In that decision, it was also laid down that the deputationists, who had already put in number of years of service in their parent department were to be given seniority over direct recruits for purpose of promotion.

24. The Supreme Court in K. MADHAVAN VS. UNION OF INDIA reported in 1987 (4) SCC 566 was pleased to declare:

121. We may examine the question from the different point of view. There is not much difference between deputation and transfer. Indeed, when a deputationist is permanently absorbed in the CBI, he is under the rules appointed on transfer. In other words, deputation may be regarded as a transfer from one government department to another. It will be against all rules of service jurisprudence, if a government servant holding a particular post is transferred to the same or an equivalent post in another



government department, the period of his service in the post before his transfer is not taken into consideration in computing his seniority in the transferred post. The transfer cannot wipe out his length of service in the post from which he has been transferred. It has been observed by this Court that it is a just and wholesome principle commonly applied where persons from different sources are drafted to serve in a new service that their pre-existing total length of service in the parent department should be respected and presented by taking the same into account in determining their ranking in the new service cadre."

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25. The Apex Court in the case of Sri S.I. ROOPLAL & ANOTHER VS. Lt. GOVERNOR THROUGH CHIEF SECRETARY, DELHI & OTHERS reported in AIR 2000 SC 594, was pleased to reiterate the principles enunciated in K. Madhavan's case and was further pleased to observe:

"15. We will now take up the question whether the appellants are entitled to count their service rendered by them as Sub-Inspector in the BSF for the purpose of their seniority after absorption as Sub-Inspector (Executive) in Delhi Police or not. We have already noticed the fact that it is pursuant to the needs of Delhi Police that these officials were deputed to Delhi Police from the BSF following the procedure laid down in Rule 5(h) of the Rules

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and subsequently absorbed as contemplated under the said Rules. It is also not in dispute that at some point of time in the BSF, the appellants' services were regularised in the post of Sub-Inspector and they were transferred as regularly appointed Sub-Inspectors to Delhi Police Force. Therefore, on being absorbed in an equivalent cadre in the transferred post, we find no reason why these transferred officials should not be permitted to count their service in the parent department. At any rate, this question is not res integra and is squarely covered by the ratio of judgments of this Court in more than one case. Since the earlier Bench of the tribunal relied upon Madhavan's case to give relief to the deputationists, we will first consider the law laid down by this Court in Madhavan's case (AIR 1987 SC 2291) (1988 Lab IC 26) (supra). This Court in that case while considering a similar question, came to the following conclusion (para 21 of AIR, Lab IC):

"We may examine the question from a different point of view. There is not much difference between deputation and transfer. Indeed, when a deputationist is permanently absorbed in the CBI, he is under the rules appointed on transfer. In other words, deputation may be regarded as a transfer from one government department to another. It will be against all rules of service jurisprudence, if a government servant holding a particular post is transferred to the same or an equivalent post in another government department, the period of his



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service in the post before his transfer is not taken into consideration in computing his seniority in the transferred post. The transfer cannot wipe out his length of service in the post from which he has been transferred. It has been observed by this Court that it is a just and wholesome principle commonly applied where persons from different sources are drafted to service in a new service that their preexisting total length of service in the parent department should be respected and presented by taking the same into account in determining their ranking in the new service cadre. See. R.S. Mokashi V. L. M. Menon (1982) 1 SCC 379: (AIR 1982 SC 101: 1982 Lab IC 38) Wing Commander J. Kumar V. Union of India (1982) 3 SCR 453: (AIR 1982 SC 1064: 1982 Lab IC 1586)."

(emphasis supplied)

16. Similar is the view taken by this Court in the cases of R.S. Mokashi and Wing commander J. Kumar (supra) which judgments have been followed by this Court in Madhavan's case. Hence, we do not think it is necessary for us to deal in detail as to the view taken by this Court in those judgments. Applying the principles laid down in the above referred cases, we hold the appellants re entitled to count the substantive service rendered by them in the post of Sub-Inspector in the BSF while counting their service in the post of Sub-Inspector (Executive) in Delhi Police Force."

26. In all these cases, the



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significant factor was that an employee working in one Department or Organisation was deputed to work in another Department or Organisation, which was under the control of the same employer. For instance, in the case of Rooplal and others, an employee officer was working as Sub-Inspector of Police in Border Security Force, which Organisation is under the control of Union Government, was deputed to work in Delhi Police and after such deputation, was absorbed in the Delhi Police, which organisation is under the control of the Union Government. Taking into consideration that since the deputation was from one Organisation to another Organisation under the same employer, the Court was pleased to observe "on being absorbed in an equivalent cadre in the transferred post, there could be no reason why transferred officials should not be permitted to count their service in the parent department".

27. Keeping in view the law declared by the Supreme Court, let me now advert to the fact situation in the present cases.



Respondents 3 to 9 were working in the Institute of Animal Health and Veterinary Biologicals, which was functioning under the Administrative control of the Agriculture and Animal Husbandry, Department of Government. It is not in dispute that during the year 1973, they were all working as Asst. Directors in the parent department. The Institute was permitted to be converted into a society by the State Government by its order dated 7.4.1978. All Officers and Staff working in the Institute were allowed to continue to work in the society till appropriate Service Rules are framed prescribing the procedure for appointment in the newly formed society/institute. By yet another order dated 31.3.1979, the State Government, pending finalisation of their absorption or repatriation to the parent department was pleased to order that the Officers and Staff working in the institute are deemed to be on deputation to the society from the date of registration. The services of these deputationists came to be absorbed in the Institute subsequently. Much earlier to the date of absorption of

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these deputationists, petitioner was appointed in the respondent-Society as Assistant Director by direct recruitment. Now the only question that requires to be considered is whether the past services rendered by the deputationists in the State Government should be reckoned for the purpose of computation of their seniority and promotion in the respondent-Society. The answer is quite obvious. However, learned Counsels relying on the observations made by Apex Court in Madhavan's case and Rooplal's case submit that, if a Government servant holding a particular post is either deputed or transferred to the same post or an equivalent post in another government department, the period of his service in the post requires to be taken into consideration for computing his seniority in the transferred or deputed post otherwise it will be against all rules of service jurisprudence, since deputation cannot wipe out his length of service in the post from which he has been deputed. The learned Counsel for the University raises yet another plea in justification of



the impugned seniority list and submits that since the policy decision to the proposed Society is laid down and controlled by the State Government, the service rendered by the deputationists in the State Government requires to be taken into consideration by the Society and accordingly, it was considered and deputationists were placed above petitioner and others. 92

28. In so far as the first contention canvassed by learned Counsel for petitioner is concerned, there cannot be any dispute. If the respondents had been deputed to any department or organisation under the administrative control of the same employer and absorbed thereafter except if the rules or regulations otherwise provide, their past services are bound to be taken into consideration for computing their seniority in the transferred department but if the employer is different as in the present case, it is difficult to accept the proposition. If a person working in Government service is deputed to work in a Corporation, autonomous bodies or Societies 11



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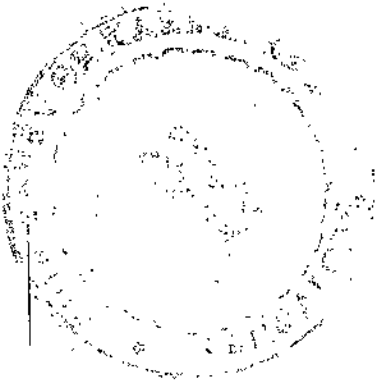
with an option to him to come back to the parent department, but if he chooses for absorption of his service in the deputed post, then he should necessarily forego his services in the Government department. In the present case, respondents were in the Government Service, when the first respondent-Society was formed. Their services were deputed to the Society. They were given notice to exercise their option either to come back to the parent department or for absorption in the deputed post and place. They consciously opted for absorption of their services in the respondent-Society. In my considered opinion, their past services in the State Government cannot be taken into consideration for the purpose of computing their seniority in the deputed place which is under the administrative control of a different employer altogether.

29. Secondly, it is no doubt true from the perusal of Memorandum of Association, Rules and Byelaws of the Society and it is abundantly clear that the respondent-Society is fully controlled by



the State Government and this only makes the Society to be the instrumentality of the State Government but it cannot be said that the employee officer of the Society are the employees of the State Government. Therefore, the Universities learned Counsel is not correct when he makes a statement that since the respondent-Society is bound by policy decision laid down by the State Government, the persons deputed from State Government to the respondent-Society and absorbed thereafter, can claim the past services in the State Government for the purpose of computation of their seniority in the respondent-Society. The Supreme Court in S.K. Mathur's case has declared that "where recruitment is made from two different sources and an integrated seniority list is prepared of the persons so recruited, the benefit of service already rendered on a similar post in a similar organisation under the same employer will have to be given to the person appointed in the new post". In my opinion, the aforesaid dicta of the Apex Court will not apply to the fact situation since respondents were deputed from the

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State Government to work in a Society under the administrative control over the different employer.

30. In my opinion, in view of the conclusion reached by me on the first issue canvassed by learned Counsel for petitioner, the other legal issues raised by him pales into insignificance but since it was argued at length, I am considering those issues also.

31. The learned Counsel contends that deputation is not a transfer and therefore, the respondent-institute could not have taken the assistance of Rule 6 of the Seniority Rules in computing the seniority of deputationist. This submission has no merit in view of the observations made by Apex Court in K. Madhavan's case. Secondly, Rule 6 of the Seniority Rules came up for interpretation by this Court in the case of K. SHIVAPPA VS. STATE OF MYSORE & OTHERS reported in 1970(1) My.L.J. 235. In the said decision, the Court was pleased to observe:



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"Once the power of the Government to transfer a person from one Department or service to another in public interest, is accepted, it is difficult to conceive any rational basis other than the one embodied in Rule 6, for determining the seniority of an officer who has been transferred from one Department or service to another. Should it be provided that an officer who is so transferred, shall be placed in the seniority list of the new Department or service (to which he is transferred) below all officers borne on that class or grade of service on or before the date of his transfer, then, such officer will lose, for no fault of his, the benefit of his previous service in the equivalent grade or class, for the purpose of seniority in the new Department of service and it would work a great injustice to him. When the transfer of such officer is not out of his volition, but at the instance of the Government and in public interest, it is but reasonable that the previous service of such officer in the equivalent grade or class should be taken into account for reckoning his seniority in the Department or service to which he has been transferred. Far from being arbitrary or unreasonable, the provision of Rule 6 of the Seniority Rules, is just and fair."

32. The Apex Court in K. Madhavan's case has observed that there is not much difference between deputation and transfer and the deputation may be regarded as a transfer from one department to another in



the public interest. Rule 6 of the Seniority Rules cannot be pressed into service to determine the seniority of direct recruits and the deputationists. If an employee officer working in the same department is transferred to or deputed to another unit or department, under the same department at his request or in the public interest, the provisions of the said Rule will apply to determine the ranking that requires to be assigned to such an Officer employee. Therefore, the contention canvassed by learned Counsel for petitioner cannot be accepted.

33. Nextly, it is submitted that since the adoption of Rule 6 of the Seniority Rules by the institute is not made known to the employees in the manner known to law, the institute cannot take assistance of the said Rule. In support of this contention, the learned Counsel relies on the observations made by Apex Court in the case of B.K. SRINIVASAN VS. STATE OF KARNATAKA & OTHERS reported in AIR 1987 SC 1059. In my view, the said contention has no merit for the reason, firstly, the institute when

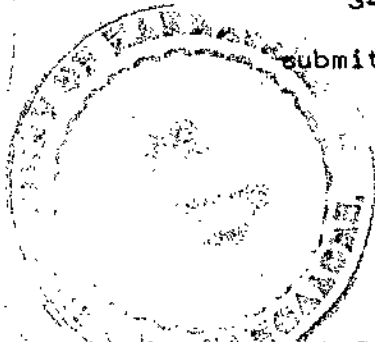


it prepared and published the provisional seniority list of Deputy Directors had clearly brought to the notice of all the employees working in the institute that the draft seniority list is prepared after adopting and following the principles envisaged under Rule 6 of the Seniority Rules. No one objected to this, including petitioner. Secondly, the Service Regulation of the institute does not provide the manner and method that such adoption should be made known to its employees. In absence of such prescription, one of the method could be by informing them while preparing the draft seniority list and calling for objections from the aggrieved persons to the ranking assigned to them in the said list and lastly, the adoption of the Seniority Rules by the institute has not caused any prejudice to any one of its employees, therefore, the irregularity if any in adopting the rules does not effect the merits of the case.

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34. The learned Senior Counsel nextly submits that the deputationists should not

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have been treated on par with the officers appointed on direct recruitment, while preparing the seniority list of Deputy Directors and therefore, the impugned seniority list is in violation of Art.14 of the Constitution. In support of this contention, the learned Counsel invites my attention to the observations made by Apex Court in the case of JAIRAM SHARMA VS. JAMMU DEVELOPMENT AUTHORITY reported in 1997(2) LLJ 191. That was a case where the appellant before the Supreme Court was working as Office Superintendent even before 5th respondent therein came to be deputed to the post of Office Superintendent in the transferred department, but the appellant's case had not been considered for promotion to the post of public relation officer when 5th respondent, who had been posted on deputation was promoted to the post of Public Relation Officer ignoring the case and claim of the appellant. Keeping in view the factual situation in the instant case, the Court was pleased to observe:

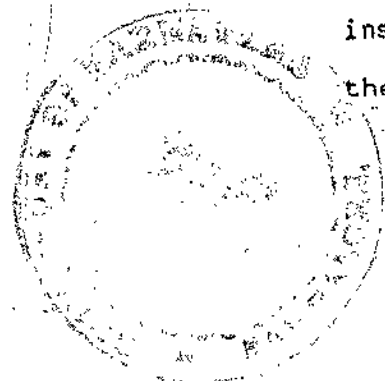
"The impugned action was illegal



and arm twist to nepotism. When the appellant was a regular candidate as Office Superintendent, he was entitled to be considered in preference to the deputationist, who was not a member of the service on that date."

35. In my opinion, the observations made by Apex Court in the aforesaid decision may not assist the petitioner in any manner whatsoever for deciding the issues in the present case, since the fact situation in the instant case is entirely different.

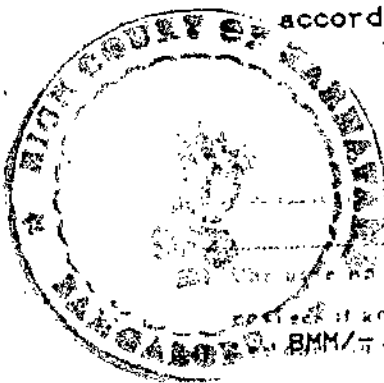
36. Lastly, since I have come to the conclusion that the past service of the deputationist should not have been taken into consideration by the institute, while assigning their ranking in the seniority list of Asst. Directors and Deputy Directors in the institute, the contention of the learned Counsel that the institute could not have altered the order made by the State Government dated 7.3.1987, while absorbing the deputationist in the institute from a particular date pales into insignificance and in my opinion, to decide the prime issue in the present case, the



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contention of the learned Counsel need not be decided in this case.

37. In the result, writ petition deserves to be allowed. Accordingly, it is allowed. Rule made absolute. The impugned seniority list dated 30.12.1997 is set aside. A direction is issued to the respondent-Society to prepare fresh seniority list of Deputy Directors keeping in view the observations made by this Court in the course of this order within six months from the date of receipt of a copy of this Court's order. Till such time, the respondents are directed not to disturb any promotions granted basing on the seniority lists prepared earlier. In the facts and circumstances of the case, parties are directed to bear their own costs. Ordered accordingly.



Sd/-
Judge

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- ✓ The date on which copy is delivered to the applicant..... 22/8/12

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IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 6TH DAY OF APRIL 2000

BEFORE

THE HON'BLE MR. JUSTICE H.L. DATTU

WRIT PETITION NOS. 4183 TO 4186/1998
C/W W.P.NOS. 3863 TO 3865/1998W.P.NOS. 4183 TO 4186/1998

BETWEEN:

1. Dr. M.D. Venkatesha
s/o Dasappa Gupta M.R.2. Dr. N.G. Ramesh Babu
s/o Govinda Setty N.R.3. Dr. K. Sripad
s/o Krishna Rao R.4. Dr. P. Giridhar
s/o Papanna S.

.... Petitioners.

All are major, Occ:
Scientist-1 presently
working at Institute of
Animal Health & Veterinary
Biologicals, Hebbal
Bangalore-24.

(By Sri M.R. Achar, Sr. Counsel & Krishna
Dixit, Adv.)

AND:

1. The State of Karnataka
by its Secretary, Dept.
of Animal Husbandry
Vidhana Soudha
Bangalore-1.

2. The Institute of Animal
Health and Veterinary Bio-
logicals, Hebbal, B'lore-24
reptd. by its Member Secre-
tary/Director.

3. Dr. G.J. Agnihotri
Deputy Director.

This Certified copy contains 4 pages
And copies charges of Rs. 15/- is
received



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4. Dr. M. Ramaswamy
Deputy Director.

5. Dr. S. Premalakaatha
Deputy Director.

6. Dr. A.J. Bragita, Deputy
Director.

7. Dr. M. Muddarange Gowda
Deputy Director.

8. Dr. K.L. Revappa
Deputy Director.

9. Dr. Syed Mukhtar Ahmed
Deputy Director.

10. Dr. G.S. Srinivasulu
Deputy Director.

11. Dr. K.R. Ramanatha
Deputy Director.

..... Respondents.

R3 to 11 are in the cadre of
Scientist-III presently work-
ing in the Institute of Animal
Husband and Veterinary Bio-
logicals, Hebbal, B'lore-24.

(By Sri V.S. Prasad, Adv. for R2.
Sri George Joseph, Adv. for R6
M/S Shetty & Hegde A/S, Advs. for
R11.)

W.P. NOS. 3863 TO 3865/1998

BETWEEN:

1. Dr. Maya Madhukar Babu
s/o Vajravelu, major
occ. service, w/a. Institute
of Animal Health & Veterinary
Biologicals, Hebbal
Bangalore - 24.

2. Dr. M.M. Kumar, s/o.
Marulappa, age major
occ. Service, w/a.
Institute of Animal
Health & Veterinary
Biologicals, Hebbal



... 3 ...

Bangalore - 24.

3. Dr. S.R. Jayakumar
s/o. K. Seetharamaiah
age major, occ. service
w/a. Institute of Animal
Health & Veterinary
Biologicals, Hebbal
Bangalore - 24.

... PETITIONERS

(By Sri M.R. Achar, Sr. Counsel & Krishna
Dixit, Adv.)

AND:-

1. The State of Karnataka
by its Secretary, Dept.
of Animal Husbandry
Vidhana Soudha
Bangalore-1.

2. The Institute of Animal
Health and Veterinary Bio-
logicals, Hebbal, B'lore-24
reptd. by its Member Secre-
tary/Director.

3. Dr. A.G. Gokak
Deputy Director.

4. Dr. G.J. Agnihotri
Deputy Director.

5. Dr. M. Ramaswamy
Deputy Director.

6. Dr. S. Premalakaatha
Deputy Director.

7. Dr. A.J. Bragita, Deputy
Director.

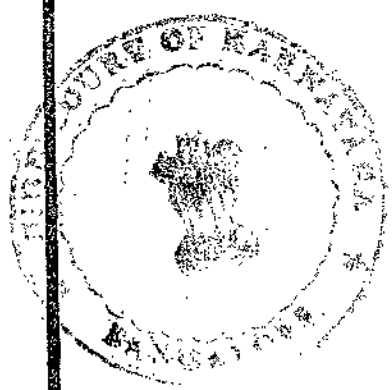
8. Dr. M. Muddarange Gowda
Deputy Director.

9. Dr. K.L. Revappa
Deputy Director.

10. Dr. Syed Mukhtar Ahmed
Deputy Director.

11. Dr. G.S. Srinivasulu
Deputy Director.

... Respondents



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R3 to 11 are in the cadre of Scientist-III presently working in the Institute of Animal Husband and Veterinary Biologicals, Hebbal, B'lore-24.

(By Sri V.S. Prasad, Adv. for R2.
Sri George Joseph, Adv. for R7
M/s. Vagdevi A/S, Advs. for
R-9 & R11, Sri N.B. Bhat, Adv.,
for R-3, 4, 5 & 6.)

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These W.Ps. are filed under Arts.226 & 227 of the Constitution of India, praying to quash the final seniority list dated 30.12.1997 and etc.

These W.Ps. having been reserved for Orders, this day the Court made the following:

ORDER

The issues raised and the relief sought for by the petitioners in these petitions are identical with the issues raised and considered by this Court in W.P. 2522/1998.

2. Following the observations made in the aforesaid decision, these petitions are also allowed. Ordered accordingly.



12/8/12

The date on which charges were submitted

13/8/12

The date on which charges were submitted

BMM/LRS

21/8/12

21/8/12

24/8/12

22/8/12

Sd/-
Judge

(TRUE COPY)

[Signature]

21/8/12

112

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 2nd DAY OF SEPTEMBER 2003

PRESENT

THE HON'BLE MR.JUSTICE P.VISHWANATHA SHETTY

AND

THE HON'BLE MR.JUSTICE AJIT J.GURJAL

WRIT APPEAL NO. 3951/2000

BETWEEN:

THE INSTITUTE OF ANIMAL HEALTH AND VETERINARY
BIOLOGICALS, HEBBAL,
BANGALORE-24, REPT BY ITS
MEMBER SECRETARY/DIRECTOR

... APPELLANTS

(By Sri : D N NANJUNDA REDDY, ADV)

AND :

- 1 C RENUKAPRASAD
S/O.LATE C.CHENNAVEERAPPA
AGE 45 YRS, OCC:SERVICE
W/A.INSTITUTE OF ANIMAL HEALTH
AND VETERINARY BIOLOGICALS
HEBBAL,
BANGALORE-24
- 2 THE STATE OF KARNATAKA
BY ITS SECRETARY
DEPARTMENT OF ANIMAL HUSBANDRY
VIDHANA SOUDHA
BANGALORE-1
- 3 A G GOKAK
DEPUTY DIRECTOR

CADRE OF DEPUTY DIRECTOR,
PRESENTLY WORKING IN THE INSTITUTE
OF ANIMAL HEALTH AND VETERINARY
BIOLOGICALS, HEBBAL
BANGALORE-24

- 4 G J AGNIHOTRI
DEPUTY DIRECTOR
CADRE OF DEPUTY DIRECTOR,
PRESENTLY WORKING IN THE INSTITUTE
OF ANIMAL HEALTH AND VETERINARY
BIOLOGICALS, HEBBAL
BANGALORE-24
- 5 M RAMASWAMY
DEPUTY DIRECTOR
CADRE OF DEPUTY DIRECTOR,
PRESENTLY WORKING IN THE INSTITUTE
OF ANIMAL HEALTH AND VETERINARY
BIOLOGICALS, HEBBAL
BANGALORE-24
- 6 S PREMALATHA
DEPUTY DIRECTOR
CADRE OF DEPUTY DIRECTOR,
PRESENTLY WORKING IN THE INSTITUTE
OF ANIMAL HEALTH AND VETERINARY
BIOLOGICALS, HEBBAL
BANGALORE-24
- 7 A J BRAGITA
DEPUTY DIRECTOR
CADRE OF DEPUTY DIRECTOR,
PRESENTLY WORKING IN THE INSTITUTE
OF ANIMAL HEALTH AND VETERINARY
BIOLOGICALS, HEBBAL
BANGALORE-24
- 8 M MUDDARANGE GOWDA
DEPUTY DIRECTOR
CADRE OF DEPUTY DIRECTOR,
PRESENTLY WORKING IN THE INSTITUTE
OF ANIMAL HEALTH AND VETERINARY
BIOLOGICALS, HEBBAL
BANGALORE-24

9 K L REVAPPA
DEPUTY DIRECTOR
CADRE OF DEPUTY DIRECTOR,
PRESENTLY WORKING IN THE INSTITUTE
OF ANIMAL HEALTH AND VETERINARY
BIOLOGICALS, HEBBAL
BANGALORE-24

... RESPONDENTS

(By Sri : KRISHNA S DIXIT FOR R1,
Smt. Ratna Shivayogimath, GA for R2)

-000-

This Writ Appeal is filed under Sec.4 of the Karnataka High Court Act praying to set aside the order passed in W.P.No.2522/1998 dated 6.4.2000.

This Writ Appeal coming on for further hearing this day, P.Vishwanatha Shetty J., made the following:

JUDGMENT

This Writ appeal is directed against the order passed by the learned Single Judge in WP No.2522/1998. The petitioner in WP No.2522/1998 is one Dr. Renuka Prasad. He is the first respondent in this appeal. He has filed a memo which reads as follows:

"In the above matter the respondent No.1 submits that, he withdraw the WP No.2522/1998 in view of Appellant's



assurance of considering his case of Selection and Appointment for the post of Director. Therefore, this memo may kindly be taken on record and first respondent be treated as non-contestant in the interest of justice.

2. Sri.Nanjunda Reddy, learned Counsel appearing for the appellant submitted that the said petitioner who is the first respondent herein has been promoted to the cadre of Scientist-IV on 13.6.2002 and since then, he is holding the said post. The said petitioner is not interested in contesting this appeal and enforcing the rights accrued to him in WP No.2522/1998.

3. Sri.Dixit, learned Counsel appearing for the first respondent submitted that since the first respondent is promoted to the post of Scientist-^{IV} and he will not be reverted from the said post even if the petitioner withdraws the writ petition, he may be permitted to withdraw the writ petition.

Writ

4. The submission made by Sri.Nanjunda Reddy, learned Counsel for the appellant that the first respondent has already been promoted to the post of Scientist-^{IV} and he will not be reverted from the said post is placed on record. The writ petition filed by the first respondent is dismissed as having become infructuous. Consequently this writ appeal is dismissed. However, it is made clear that the dismissal of the writ petition No.2522/1998. would not affect the rights of other parties who have filed writ petitions before this Court and which have been allowed following the decision rendered in WP No.2522/1998.

5. Smt.Ratna Shivayogimath, learned Govt.Advocate is permitted to file memo of appearance within four weeks from today.

Sd/-
Judge

Sd/-
Judge

sm/-

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 2nd DAY OF SEPTEMBER 2003

PRESENT

THE HON'BLE MR.JUSTICE P.VISHWANATHA SHETTY

AND

THE HON'BLE MR.JUSTICE AJIT J.GUNJAL

WRIT APPEAL NO. 3923-29/2000

BETWEEN:

DR K.L. REVAPPA
S/O LINGAPPA
MAJOR BY AGE,
INSTITUTE OF ANIMAL HEALTH AND
VETERINARY BIOLOGICALS HEBBAL
BANGALORE-24

... APPELLANT

(By Sri: S P SHANKAR, ADV)

AND :

- 1 STATE OF KARNATAKA
BY ITS SECRETARY
DEPT OF ANIMAL HUSBANDRY
VIDHANA SOUDHA
BANGALORE-1
- 2 INSTITUTE OF ANIMAL HEALTH &
VETERINARY BIOLOGICALS HEBBAL
BANGALORE-24
BY IS MEMBER SECRETARY/DIRECTOR
- 3 C RENUKA PRASAD
S/O LATE C CHANNAVEERANNA
AGED ABOUT 45 YEARS
WORKING IN INSTITUTE OF ANIMAL HEALTH &

VETERINARY BIOLOGICALS
HEBBAL, BANGALORE-24

- 4 MAYA MADHUKAR BABU
S/O UAJRAVELU
MAJOR
WORKING IN INSTITUTE OF ANIMAL HEALTH &
VETERINARY BIOLOGICALS
HEBBAL, BANGALORE-24
- 5 M M KUMAR
S/O MARULAPPA
MAJOR
WORKING IN INSTITUTE OF ANIMAL HEALTH &
VETERINARY BIOLOGICALS
HEBBAL, BANGALORE-24
- 6 S R JAYAKUMAR
S/O K SEETHARAMAIAH
MAJOR
WORKING IN INSTITUTE OF ANIMAL HEALTH &
VETERINARY BIOLOGICALS
HEBBAL, BANGALORE-24
- 7 M D VENKATESH
S/O DASAPPA GUPTA M R
MAJOR
WORKING IN INSTITUTE OF ANIMAL HEALTH &
VETERINARY BIOLOGICALS
HEBBAL, BANGALORE-24
- 8 N G RAMESH BABU
S/O GOVINDA SETTY N R
MAJOR
WORKING IN INSTITUTE OF ANIMAL HEALTH &
VETERINARY BIOLOGICALS
HEBBAL, BANGALORE-24
- 9 K SRIPAD
S/O R KRISHNA RAO
MAJOR
WORKING IN INSTITUTE OF ANIMAL HEALTH &
VETERINARY BIOLOGICALS
HEBBAL, BANGALORE-24
- 10 P GIRIDHAR

S/O S PAPANNA
MAJOR
WORKING IN INSTITUTE OF ANIMAL HEALTH &
VETERINARY BIOLOGICALS
HEBBAL, BANGALORE-24

... RESPONDENTS

(By Sri : KRISHNA S DIXIT FOR C/R3,
Smt.Ratna Shivayogimath, GA for R1)

-000-

This Writ Appeal is filed under Sec.4 of the Karnataka High Court Act praying to set aside the order passed in W.P.No.2522/1998 dated 6.4.2000.

This Writ Appeal coming on for further hearing this day, P.Vishwanatha Shetty J., made the following:

JUDGMENT

Sri. S.P.Shankar, learned Counsel appearing for the appellants submits that the appellants have retired from service in September 2002.

2. Sri.Nanjunda Reddy, learned Counsel appearing for the second respondent - Institute, on instructions of Sri.Channakeshava, Administrative Officer submits that since the appellants have retired from service, their pensionary benefits will not be

✓

[Signature]

not be affected inspite of the outcome of the writ appeal filed by the Institute challenging the correctness of the Judgment passed in WP No.2522/1998 and connected writ petitions. Even otherwise, since the appellants were holding the post of Scientist-3 and discharging the services till their retirement, the pensionary benefits cannot be affected.

3. In the light of the submission made by Sri.Narayana Reddy, learned Counsel for the second respondent - Institute, Sri.S.P.Shanker, learned Counsel appearing for the appellants submitted that the above appeals might be dismissed as not pressed. Accordingly, these appeals are dismissed as not pressed.

4. Smt.Ratna Shiveyogimath, learned Govt.Advocate is permitted to file memo of appearance within four weeks from today.

Sd/-
Judge

Sd/-
Judge

32 39510/03 90
ANNEXURE-F

G. J. Agnihotri

C No. 111

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 2nd DAY OF SEPTEMBER 2003

PRESENT

THE HON'BLE MR. JUSTICE P. VISHWANATHA SHETTY

AND

THE HON'BLE MR. JUSTICE AJIT J. GUNJAL

WRIT APPEAL NO. 3943/2000

BETWEEN:

- 1 DR G J AGNIHOTRI
S/O LATE J P AGNIHOTRI
AGED ABOUT 60 YRS.
R/O NO 113, III MIAN
AG'S COLONY, ANANDNAGAR
HEBBAL, BANGALORE-560 024
- 2 M RAMASWAMY
S/O D M MUNIYAPPA
57 YRS, CURRENTLY WORKING AS JT.
DIRECTOR INSTITUTE OF ANIMAL HEALTH AND
VETERINARY BIOLOGICAL, R/O NO. 143
II CROSS, UAS LAYOUT, RMV II STAGE
BANGALORE-560 094
- 3 PREMALATHA
W/O SYED ZAKI
57 YRS, CURRENTLY WORKING AS JT.
DIRECTOR INSTITUTE OF ANIMAL HEALTH AND
VETERINARY BIOLOGICAL, R/O NO. 44
P & T COLONY, R T NAGAR
BANGALORE-560 032



... APPELLANTS

(By Sri : VIJAYA KUMAR, ADV FOR
LAW ASSOCIATES)

This certified copy contains...
pages and Court Fee stamps of Rs
is affixed. Rs 15
paid in cash

AND :

- 1 STATE OF KARNATAKA
BY ITS SECRETARY
DEPT OF ANIMAL HUSBANDRY
VIDHANA SOUDHA
BANGALORE-1
- 2 INSTITUTE OF ANIMAL HEALTH AND VETERINARY
BIOLOGICAL HEBBAL
BANGALORE-24
REP BY ITS MEMBER SECY/DIRECTOR
- 3 C RENUKA PRASAD
S/O LATE C CHANNAVEERANNA
MAJOR
WORKING IN INSTITUTE OF ANIMAL
HEALTH AND VETERINARY BIOLOGICAL
HEBBAL
BANGALORE

... RESPONDENTS

(By Sri: KRISHNA S DIXIT FOR C/R3,
Sri.D.N.Nanjunda reddy, Adv for R2,
Smt.Ratna Shivayogimath, GA for R1)

-000-

This Writ Appeal is filed under Sec.4 of the Karnataka
High Court Act praying to set aside the order passed in
W.P.No.2522/1998 dated 6.4.2000.

This Writ Appeal coming on for further hearing
this day, P.Vishwanatha Shetty J., made the following:

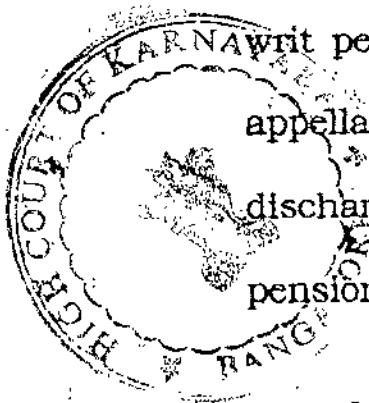
JUDGMENT

JUDGMENT

Sri. Vijaya Kumar, learned Counsel appearing for the appellants submits that the appellants have retired from service in September 2002.

2. Sri.Nanjunda Reddy, learned Counsel appearing for the second respondent - Institute, on instructions of Sri.Channakeshava, Administrative Officer submits that since the appellants have retired from service, their pensionary benefits will not be affected irrespective of the outcome of the writ appeal filed by the Institute challenging the correctness of the Judgment passed in WP No.2522/1998 and connected writ petitions. In our view, even otherwise, since the appellants were holding the post of Scientist-4 and discharging the services till their retirement, the pensionary benefits cannot be affected.

3. In the light of the submission made by Sri.Narayana Reddy, learned Counsel for the second respondent - Institute, Sri.Vijaya Kumar, learned



Counsel appearing for the appellants submitted that the above appeals may be dismissed as not pressed. Accordingly, these appeals are dismissed as not pressed.

4. Smt. Ratna Shivayogimath, learned Govt. Advocate is permitted to file memo of appearance within four weeks from today.



Sd/-
Judge

Sd/-
Judge

sm/-

(a) The date on which the application was made 21/11/03

(b) The date on which charges and additional charges if any are called for 24/11/03

(c) The date on which charges and additional charges, if any are deposited/paid 24/11/03

(d) The date on which the copy is ready 24/11/03

(e) The date of notifying that the copy is ready for delivery 24/11/03

(f) The date on which the applicant is required to appear on or before 27/11/03

(g) The date on which copy is delivered to the applicant 24-11-03

(h) Examined by Agers

"TRUE COPY"

T. Ar. Rang 24/11/03
Section Officer
High Court of Karnataka,
Bangalore-560 001.

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 2nd DAY OF SEPTEMBER 2003

PRESENT

THE HON'BLE MR.JUSTICE P.VISHWANATHA SHETTY

AND

THE HON'BLE MR.JUSTICE AJIT J.GUNJAL

WRIT APPEAL NO. 6223-24 AND 6226/2000

BETWEEN:

THE INSTITUTE OF ANIMAL HEALTH
AND VETERINARY
BIOLOGICALS, HEBBAL,
BANGALORE-24, REPT BY ITS
MEMBER SECRETARY/DIRECTOR

... APPELLANT

(By Sri : D N NANJUNDA REDDY, ADV)

AND :

1. Dr.M.D.Venkatesh
S/o Dasappa Gupta M.R
2. Dr.N.G.Ramesh Babu,
S/o.Govinda Setty N.R.

3. Dr.K.Sripad
S/o.Krishna Rao R.

4. Dr.P.Giridhar
S/o.Papanna S

All are major,
Occ: Scientist-1,
Presently working at
Institute of Animal
Health & Veterinary
Biologicals, Hebbal,
Bangalore-24.

5. State of Karnataka
Rep. by its Secretary;
Dept. of Animal Husbandry
Vidhana Soudha,
Bangalore-1.

6. Dr.G.J.Agnihotri
Deputy Director

7. Dr.M.Ramaswamy
Deputy Director

8. Dr.S.Premalatha
Deputy Director

9. Dr.A.J.Bragita
Deputy Director

10. Dr.M.Muddarange Gowda
Deputy Director

11. Dr.K.L.Revappa
Deputy Director

12. Dr.Syed Mukhtar Ahmed
Deputy Director

13. Dr.G.S.Srinivasulu

Deputy Director

14. Dr.K.R.Ramanatha
Deputy Director

Respondents No.6 to 14 are
All majors, all are in the
Cadre of Scientist-III,
Presently Working at Institute
of Animal Health &
Veterinary Biologicals
Hebbal, Bangalore-560024.

..RESPONDENTS

(By Sri : Krishna S. Dixit, Adv FOR R1, 2 and 4

-000-

These Writ Appeals are filed under Sec.4 of the
Karnataka High Court Act praying to set aside the order
passed in W.P.No.4183-4184 and 4186/1998 dated
6.4.2000.

These Writ Appeals coming on for further hearing
this day, P.Vishwanatha Shetty J., made the following:

JUDGMENT

These Writ appeals are directed against the order
passed by the learned Single Judge in WP Nos. 4183 -
4184 and 4186/1998.

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2. The respondents 1 & 2 and the 4th respondent in these appeals have filed a memo which reads as follows:

"In the above matter the respondent No.1 - Dr.M.D.Venkatesh, respondent No.2 - Dr.N.G.Ramesh Babu and respondent No.4 - Dr. P.Giridhar have been granted promotion to the post of Scientist - III post and therefore they seek leave to withdraw their WP Nos. 4183, 4185 and 4186/1998 (S). The leave may kindly be granted in the interest of justice".

3. Sri.Nanjunda Reddy, learned Counsel appearing for the appellant submitted that the first, second and the fourth respondents herein have been promoted to the cadre of Scientist-3 on 1.1.2003 and since then, they are holding the said post; the said respondents will not be reverted from the said posts.

4. Sri.Krishna S.Dixit, learned Counsel appearing for the first, second and the fourth respondents submitted that since the first, second and the fourth respondents are promoted to the post of Scientist-3 and in the light



of the statement made by Mr. Reddy that they will not be reverted from the said post even if they withdraws the writ petitions, they may be permitted to withdraw the writ petitions.

5. The submission made by Sri.Nanjunda Reddy, learned Counsel for the appellant that the first, second and the fourth respondents have already been promoted to the post of Scientist-3 and they will not be reverted from the said post is placed on record. The writ petitions filed by the first, second and the fourth respondents are dismissed as having become infructuous. Consequently these writ appeals are dismissed. However, it is made clear that the dismissal of the writ petition No.4183 - 4184 and 4186/1998 would not affect the rights of other parties who have filed writ petitions before this Court and which have been allowed following the decision rendered in WP No.2522/1998.



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6. Smt. Ratna Shivayogimath, learned Govt. Advocate is permitted to file memo of appearance within four weeks from today.

Sd/-
Judge

Sd/-
Judge

Sm/

ANNEXURE- H

ಪಾಶು ಲಕ್ಷಣಗಳ ಮತ್ತು ಜೈವಿಕ ಸಂಸ್ಥೆ
ಹೆಬ್ಬಾಳ, ಬೆಂಗಳೂರು-24

23.11.02

ಸಂಖ್ಯೆ:ಪ ಲಕ್ಷ ಸಂ:ಸಿಬ್ಬಂದಿ:ಡಿಪಿ:ವಿ-3:02-03

ಕೆ.ಆ. ಸಂಖ್ಯೆ: 166 ಎ 02-03

ಕಛೇರಿ ಅದೇಶ

ವಿಷಯ: ವಿಜ್ಞಾನಿ-2 ಹುದ್ದೆಯಿಂದ ವಿಜ್ಞಾನಿ-3 ಹುದ್ದೆಗೆ ಮುಂಬಡ್ತಿ ನೀಡುವ ಬಗ್ಗೆ

ಈ ಸಂಸ್ಥೆಯಲ್ಲಿ ವಿಜ್ಞಾನಿ-2 ಆಗಿ ಕಾರ್ಯ ನಿರ್ವಹಿಸುತ್ತಿರುವ ಡಾ.ಎಂ.ಡಿ. ವೆಂಕಟೇಶ್
ಇವರಿಗೆ ವಿಜ್ಞಾನಿ-3 (ಸಂಶೋಧನೆ) ಹುದ್ದೆಗೆ ಪೇತನ ಶೇಷ ರೂ. 9580-260-10880-320-
13440-380-14200 ರಲ್ಲಿ ಮುಂಬಡ್ತಿ ನೀಡ ಆದೇಶ ಹೊರಡಿಸಲಾಗಿದೆ. ಈ ಮುಂಬಡ್ತಿಯು
ಸಂಸ್ಥೆಯ ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಸಲ್ಲಿಸಿರುವ ಮೇಲ್ಮನವಿ ಸಂಖ್ಯೆ:3951/2000ರ
ಮೇಲೆ ಹೊರಬಿಡುವ ಅಂತಿಮ ತೀರ್ಮಾನಗುವಾಗ ಬದಲಾವಣೆಯನ್ನು ಮಾಡುವ ಹಕ್ಕನ್ನು
ಕಾಯ್ದಿರಿಸಿಕೊಳ್ಳಲಾಗಿದೆ.


ನಿರ್ದೇಶಕರಾದ್ಯಂತ

ಪ್ರತಿ:

1. ಜಂಟಿ ನಿರ್ದೇಶಕರು (ಸಂ)/(ಲ.ತ)
2. ಸಂಬಂಧಿಸಿದ ವಿಭಾಗಾಧಿಕಾರಿಗಳಿಗೆ
3. ಸಂಬಂಧಿಸಿದ ನೌಕರರಿಗೆ
4. ಲೆಕ್ಕಾಧಿಕಾರಿಗಳಿಗೆ
5. ಕ.ಆ. ಪ್ರಸ್ತುತಕ್ಕೆ

Typed copy of Annexure- H

ಪಶು ಆರೋಗ್ಯ ಮತ್ತು ಹೈವಿಕ ಸಂಸ್ಥೆ,
ಹೆಬ್ಬಾಳ, ಬೆಂಗಳೂರು-24

ಸಂಖ್ಯೆ: ಪ.ಆ.ಜೈ.ಸಂ/ಸಿಬ್ಬಂದಿ/ಡಿಪಿಸಿ/ವಿ-3:2002-03 ದಿ: 23.11.02
ಕ.ಆ.ಸಂಖ್ಯೆ: 166ಎ 02.03

ಕಛೇರಿ ಆದೇಶ

ವಿಷಯ: ವಿಜ್ಞಾನಿ-2 ಹುದ್ದೆಯಿಂದ ವಿಜ್ಞಾನಿ-3 ಹುದ್ದೆಗೆ ಮುಂಬಡ್ತಿ ನೀಡುವ
ಬಗ್ಗೆ.

ಈ ಸಂಸ್ಥೆಯಲ್ಲಿ ವಿಜ್ಞಾನಿ-2 ಆಗಿ ಕಾರ್ಯ ನಿರ್ವಹಿಸುತ್ತಿರುವ
ಡಾ.ಎಂ.ಡಿ ವೆಂಕಟೇಶ್ ಇವರಿಗೆ ವಿಜ್ಞಾನಿ-3 (ಸಂಶೋಧನೆ) ಹುದ್ದೆಗೆ
ವೇತನ ಶ್ರೇಣಿ ರೂ.9580-260-10880-320-13440-380-14200 ರಲ್ಲಿ
ಮುಂಬಡ್ತಿ ನೀಡಿ ಆದೇಶ ಹೊರಡಿಸಲಾಗಿದೆ. ಈ ಮುಂಬಡ್ತಿಯು
ಸಂಸ್ಥೆಯು ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಸಲ್ಲಿಸಿರುವ ಮೇಲ್ಮನವಿ
ಸಂಖ್ಯೆ: 3951/2000ರ ಮೇಲೆ ಹೊರಬೀಳುವ ಅಂತಿಮ
ಶೀರ್ಷಿಕೆಗನುಗುಣವಾಗಿ ಬದಲಾವಣೆಯನ್ನು ಮಾಡುವ ಹಕ್ಕನ್ನು
ಕಾಯ್ದಿರಿಸಿಕೊಳ್ಳಲಾಗಿದೆ.

ನಿರ್ದೇಶಕರು

ಪ್ರತಿ:

1. ಜಂಟಿ ನಿರ್ದೇಶಕರು (ಸಂ)/(ಲ.ತ)
2. ಸಂಬಂಧಿಸಿದ ವಿಭಾಗಾಧಿಕಾರಿಗಳಿಗೆ,
3. ಸಂಬಂಧಿಸಿದ ನೌಕರರಿಗೆ,
4. ಲೆಕ್ಕಾಧಿಕಾರಿಗಳಿಗೆ,
5. ಕ.ಆ.ಮಸ್ತಕಕ್ಕೆ

ಪಶು ಅರೋಗ್ಯ ಮತ್ತು ಜೈವಿಕ ಸಂಸ್ಥೆ

ಹೆಬ್ಬಾಳ, ಬೆಂಗಳೂರು-24

ಸಂಖ್ಯೆ:ಪೆ ಆಜ್ಞೆಸಂ-ಸಿಬ್ಬಂದಿ:ಡಿಪಿ:ಪಿ-3-02-03

23.11.02

ಕೆ.ಆ.ಸಂಖ್ಯೆ: 166 ಸಂ 02-03

ಕಛೇರಿ ಅದೇಶ

ವಿಷಯ: ವಿಜ್ಞಾನಿ-2 ಹುದ್ದೆಯಿಂದ ವಿಜ್ಞಾನಿ-3 ಹುದ್ದೆಗೆ ಮುಂಬಡ್ತಿ ನೀಡುವ ಬಗ್ಗೆ

ಈ ಸಂಸ್ಥೆಯಲ್ಲಿ ವಿಜ್ಞಾನಿ-2 ಆಗಿ ಕಾರ್ಯ ನಿರ್ವಹಿಸುತ್ತಿರುವ ಡಾ.ಎನ್.ಜಿ. ರಮೇಶ್ ಬಾಬು ಇವರಿಗೆ ವಿಜ್ಞಾನಿ-3 (ರೋಗ ತನಿಖೆ) ಹುದ್ದೆಗೆ ಷೇತನ ಶ್ರೇಣಿ ರೂ. 9580-260-10880-320-13440-380-14200 ರಲ್ಲಿ ಮುಂಬಡ್ತಿ ನೀಡಿ ಅದೇಶ ಹೊರಡಿಸಲಾಗಿದೆ. ಈ ಮುಂಬಡ್ತಿಯು ಸಂಸ್ಥೆಯು ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಸಲ್ಲಿಸಿರುವ ಮೇಲ್ಮನವಿ ಸಂಖ್ಯೆ:3951/2000ರ ಮೇಲೆ ಹೊರದೇಶುವ ಆಂತಿಮ ತೀರ್ಪಿಗನುಗುಣವಾಗಿ ಬದಲಾವಣೆಯನ್ನು ಮಾಡುವ ಹಕ್ಕನ್ನು ಕಾಯ್ದಿರಿಸಿಕೊಳ್ಳಲಾಗಿದೆ.

ಇವರು ಮುಂದಿನ ಅದೇಶ ನೀಡುವವರೆಗೆ ಹಾಲಿ ನಿರ್ವಹಿಸುತ್ತಿರುವ (ಎಸ್‌ಆರ್‌ಡಿಡಿಎಲ್) ಕೆಲಸ ಕಾರ್ಯಗಳನ್ನು ನಿರ್ವಹಿಸುವುದು.


ನಿರ್ದೇಶಕರು

ಪ್ರತಿ:

1. ಜಂಟಿ ನಿರ್ದೇಶಕರು (ಸಂ)
2. ಸಂಬಂಧಿಸಿದ ವ್ಯವಸ್ಥಾಧಿಕಾರಿಗಳಿಗೆ (ಎಸ್‌ಆರ್‌ಡಿಡಿಎಲ್)
3. ಸಂಬಂಧಿಸಿದ ವಿಜ್ಞಾನಿಯವರಿಗೆ
4. ವಿಜ್ಞಾನಿಯ ವೈಯಕ್ತಿಕ ಕಡತಕ್ಕೆ
5. ಲೆಕ್ಕಾಧಿಕಾರಿಗಳಿಗೆ
6. ಕೆ.ಆ. ಪುಸ್ತಕಕ್ಕೆ

ANNEXURE-K

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ಪಶು ಆರೋಗ್ಯ ಮತ್ತು ಚೈವಿಕ ಸಂಸ್ಥೆ

ಹೆಬ್ಬಾಳ, ಬೆಂಗಳೂರು-24

ಸಂಖ್ಯೆ:ಪ ಆಡ್ವಸಂ:ಸಿಬ್ಬಂದಿ:ಡಿಪಿ:ವಿ-3-02-03

25
ದಿ: 2.04

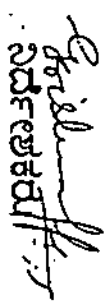
ಕ.ಆ. ಸಂಖ್ಯೆ: 257 :03-04

ಕಛೇರಿ ಆದೇಶ

ವಿಷಯ: ವಿಜ್ಞಾನಿ-2 ಹುದ್ದೆಯಿಂದ ವಿಜ್ಞಾನಿ-3 ಹುದ್ದೆಗೆ ಮುಂಬಡ್ತಿ ನೀಡುವ ಬಗ್ಗೆ

ಈ ಸಂಸ್ಥೆಯಲ್ಲಿ ವಿಜ್ಞಾನಿ-2 ಆಗಿ ಕಾರ್ಯ ನಿರ್ವಹಿಸುತ್ತಿರುವ ಡಾ.ಪಿ. ಗಿರಿಧರ್, ಇವರಿಗೆ ವಿಜ್ಞಾನಿ-3 (ಎಪಿಡೆಮಿಯಾಲಜಿ) ಹುದ್ದೆಗೆ ವೇತನ ಶ್ರೇಣಿ ರೂ. 9580-260-10880-320-13440-380-14200 ರಲ್ಲಿ ಮುಂಬಡ್ತಿ ನೀಡಿ ಆದೇಶಹೊರಡಿಸಲಾಗಿದೆ. ಈ ಮುಂಬಡ್ತಿಯು ಸಂಸ್ಥೆಯ ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಸಲ್ಲಿಸಿರುವ ಮೇಲ್ಮನವಿ ಸಂಖ್ಯೆ:3951/2000ರ ಮೇಲೆ ಮತ್ತು ವಿಜ್ಞಾನಿಗಳ ಚಿನ್ನಾಂಶವು ಮೇಲಿರುವ ಇತರ ರಿಟ್ ಅರ್ಜಿಗಳ ಮೇಲೆ ಹೊರಬೀಳುವ ಅಂತಿಮ ತೀರ್ಪಿಗನುಗುಣವಾಗಿ ಬದಲಾವಣೆಯನ್ನು ಮಾಡುವ ಹಕ್ಕನ್ನು ಕಾಯ್ದಿರಿಸಿಕೊಳ್ಳಲಾಗಿದೆ.

ಇವರು ಮುಂದಿನ ಆದೇಶ ನೀಡುವವರೆಗೆ ಹಾಲಿ ಕಾರ್ಯ ನಿರ್ವಹಿಸುತ್ತಿರುವ, ಪ್ರಾದೇಶಿಕ ಪಶು ರೋಗ ತನಿಖಾ ಪ್ರಯೋಗಾಲಯ, ಮೈಸೂರು, ಇಲ್ಲಿನ ಕೆಲಸ ಕಾರ್ಯಗಳನ್ನು ನಿರ್ವಹಿಸುವುದು.


ನಿರ್ದೇಶಕರು

18

ಪ್ರತಿ:

1. ಜಂಟಿ ನಿರ್ದೇಶಕರು (ಸಂ)/ ಲ ಉ
2. ಸಂಬಂಧಿಸಿದ ವಿಜ್ಞಾನಿಯವರಿಗೆ, ಪ್ರಾದೇಶಿಕ ಪಶು ರೋಗ ತನಿಖಾ ಪ್ರಯೋಗಾಲಯ, ಮೈಸೂರು.
- ✓ 3. ವಿಜ್ಞಾನಿಯ ವೈಯಕ್ತಿಕ ಕಡತಕ್ಕೆ
4. ಲೆಕ್ಕಾಧಿಕಾರಿಗಳಿಗೆ
5. ಕ.ಆ. ಪುಸ್ತಕಕ್ಕೆ.

ಪುರು ಇರೋಗ್ಗು ಮತ್ತು ಬೈವಿಕ ಸಂಸ್ಥೆ
ನುಬ್ಬಾಳ, ಬೆಂಗಳೂರು-24

1.1.03

$$E_{\text{eff}} = E_0 + \frac{\alpha}{2} \left(\frac{d}{L} \right)^2 \left(\frac{v}{c} \right)^2 \left(\frac{m c^2}{e V} \right) \left(\frac{V}{k T} \right)$$

७३५

ಬ್ಯಾಪನ
ಪ್ರಾಚೀನ ಪಂಚಾಂಗ ಬಗ್ಗೆ ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯ
ಅರ್ಜಿ ಸಂಖ್ಯೆ: 1000/2000 ಹಾಗೂ ಇತರ
ಅರ್ಜಿಗಳಿಗೆ ಹೇರಲಾಗುವ ರಾಜ್ಯ ಪ್ರಜ್ಞಾ ಸಂಖ್ಯೆ: 3951/2000

[illegible][illegible]

SECRET

985326
2007-08-27

ಪಶು ಆರೋಗ್ಯ ಮತ್ತು ಜೈವಿಕ ಸಂಸ್ಥೆ,
ಹೆಬ್ಬಾಳ, ಬೆಂಗಳೂರು-24

ಸಂಖ್ಯೆ: ಪ.ಆ.ಜೈ.ಸಂ/ಸಿಬ್ಬಂದಿ/ಡಿಪಿಎ/ವಿ-2002-03

ದಿ: 01.01.03

ಜ್ಞಾಪನ

ವಿಷಯ: ಸಂಸ್ಥೆಯ ವಿಜ್ಞಾನಿಗಳ ಜೇಷ್ಠತಾ ಪಟ್ಟಿಯ ಬಗ್ಗೆ ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿದ್ದ ಹೂಡಿಕೆಯ ರಿಟ್ ಅಪೀಲ್ ಸಂಖ್ಯೆ: 3951/2000 ಹಾಗೂ ಇತರೆ ರಿಟ್ ಅರ್ಜಿಗಳು.

ಸಂಸ್ಥೆಯ ವಿಜ್ಞಾನಿಗಳ ಜೇಷ್ಠತಾ ಪಟ್ಟಿಯ ಮೇಲೆ ಸಂಸ್ಥೆಯ ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಮೇಲ್ಕಂಡ ರಿಟ್ ಅಪೀಲನ್ನು

ಸಲ್ಲಿಸಿದ್ದು ಸದರಿ ರಿಟ್ ಅಪೀಲ್ ವಿರುದ್ಧ ಪ್ರತಿವಾದಿಗಳಾಗಿರುವ ಸಂಸ್ಥೆಯ ವಿಜ್ಞಾನಿಗಳ ಪೈಕಿ ಡಾ.ಎಂ.ಡಿ ವೆಂಕಟೇಶ್, ವಿಜ್ಞಾನಿ-2 ಆದ ನೀವೂ ಸಹ

ಒಬ್ಬರಾಗಿರುತ್ತೀರಿ.

ಸಂಸ್ಥೆಯಲ್ಲಿ ಚಾಲ್ತಿಯಲ್ಲಿರುವ ವಿಜ್ಞಾನಿ-2 ರ ಜೇಷ್ಠತಾ ಪಟ್ಟಿಯ ಪ್ರಕಾರ ನೀವು ಹಿರಿಯರಾಗಿರುವ ಹಾಗೂ ನಿಮ್ಮ ಅಭ್ಯರ್ಥಿತವನ್ನು ವಿಜ್ಞಾನಿ-3 ಹುದ್ದೆಗೆ ಮುಂಬಡ್ತಿ ನೀಡುವ ಬಗ್ಗೆ ಪರಿಗಣಿಸಲು ಕ್ರಮ ಕೈಗೊಳ್ಳಬೇಕಾಗಿರುವುದರಿಂದ ನೀವು ಮೇಲ್ಕಂಡ ರಿಟ್ ಅಪೀಲ್ ವಿರುದ್ಧ ಕಂಟೆಸ್ಟ್ ಮಾಡದಿರುವ ಬಗ್ಗೆ ಲಿಖಿತ ಮನವಿಯನ್ನು ಕೋರ್ಟಿನಲ್ಲಿ ಸಲ್ಲಿಸಿ ಅದರ ಪ್ರತಿಯನ್ನು ಕಛೇರಿಗೆ ಸಲ್ಲಿಸಲು ಕೋರಿದೆ.

ಸಹಿ/-
ನಿರ್ದೇಶಕರು

ಪ್ರತಿ:
ಡಾ.ಎಂ.ಡಿ.ವೆಂಕಟೇಶ್ ಇವರಿಗೆ,

ANNEXURE- M

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

WRIT APPEAL NOS. 3922 to 3929/2000

C/w

W.A.NO.3943/2000

W.A.NO.3951/2000

106

BETWEEN:

DR.K.L.REVAPPA

APPELLANTS

AND:

STATE AND OTHERS

RESPONDENTS.

M E M O

In the above matter, the Respondent No.7 i.e. Dr.M.D.Venkatesh submits that he does not want to contest the Writ Appeals provided that the Appellant-Institute in furtherance of its Letter No.Pa.Ajaisani/Sibbandhi-DAC-V-3/02-03 dated 1.1.2003 annexed hereto agrees to grant promotion to the post of Scientist-III. Accordingly it is prayed that this Memo may kindly be taken on record and this Respondent be treated as a non-contestant, in the interest of justice.

BANGALORE
DATE: -1-2003

COUNSEL FOR RESPONDENT NO.7

For Krishma S. Dixit

K.D. Venkatesh
(DR.M.D. VENKATESH)

Typed copy of Annexure- M

IN THE HIGH COURT OF KARNATAKA AT
BANGALORE

WRIT APPEAL NOS. 3922 TO 3929/2000

C/W

W.A.NO.3943/2000

W.A.NO.3951/2000

Between:

Dr.K.L.Revappa

...Appellant

And

State and others

..Respondents

MEMO

In the above matter, the respondent No.7 i.e., Dr.M.D.Venkatesh submits that he does not want to contest the Writ Appeals provided that the appellant/institute in furtherance of its Letter No.Pa, Ajaisam/Sibbandhi/DAC-V-3/02-03 dtd: 01.01.2003 annexed hereto agrees to grant promotion to the post of Scientist-III. Accordingly it is prayed that this Memo may kindly be taken on record and this Respondent be treated as a non contestant, in the interest of justice.

Bangalore

Date: .01.2003

Counsel for Respondent No.7

ANNEXURE- N

ಪಶು ಆರೋಗ್ಯ ಮತ್ತು ಜೈವಿಕ ಸಂಸ್ಥೆ
ಹೆಬ್ಬಾಳ, ಬೆಂಗಳೂರು-24

ಸಂಖ್ಯೆ: ಪ.ಆ.ಜೈ.ಸಂ/ನಿವೃಂದ/ರಪಿಸಿ/ಪಿ-3/2002-03/3545

ದಿ:8-2-04

ಟಿಪ್ಪಣಿ:

ವಿಷಯ: ಏಜ್ಞಾನಿ-3 ಹುದ್ದೆಗೆ ಮುಂಬಡ್ತಿ ನೀಡುವ ಬಗ್ಗೆ.

ಸಂಸ್ಥೆಯಲ್ಲಿ ಖಾಲಿ ಇರುವ ಏಜ್ಞಾನಿ-3 ಹುದ್ದೆಗೆ ಏಜ್ಞಾನಿ-2 ಹುದ್ದೆಯಿಂದ ಮುಂಬಡ್ತಿ ಮೂಲಕ ತುಂಬಲು ಕ್ರಮ ಕೈಗೊಳ್ಳಲಾಗುತ್ತದೆ. ಈ ಮುಂಬಡ್ತಿಗೆ ನಿಮ್ಮ ಅಭ್ಯರ್ಥಿತ್ವನವನ್ನು ಸಹ ಪರಿಗಣಿಸುವ ಸಂಭವವಿರುವುದರಿಂದ ನಿನ್ನ ಸಂಸ್ಥೆಯ ಏಜ್ಞಾನಿಗಳ ಜೀವೈತಾ ಮಟ್ಟಿಯ ಮೇಲೆ ಕರ್ನಾಟಕ ಉತ್ಪನ್ನಾಭಿವೃದ್ಧಿ ಹಣಕಾಸು ಡಿಪಾರ್ಟ್‌ಮೆಂಟ್ ವಾಪಸ್ಸು ಹೆಚ್ಚುವು/ಸಂಸ್ಥೆಯು ಹಣಕಾಸು ಡಿಪಾರ್ಟ್‌ಮೆಂಟ್ ನಿರುದ್ಧ ಕೆಲಸಕ್ಕೆ ಮನ್ನಾಡಿದಿರುವ ಬಗ್ಗೆ ಸಲ್ಲಿಸಲು ಕೋರಿದೆ. ಸೂಕ್ತ ಮಾಹಿತಿಗಳನ್ನು ಸಲ್ಲಿಸದವರೆಡ ಮುಂದುವರೆ ಕ್ರಮವನ್ನು ಕೈಗೊಳ್ಳಲಾಗುವುದು.

Agishetty
ನಿರ್ದೇಶಕರು

1) ಡಾ. ಪಿ.ಗಿರಿಧರ ನಿಜ್ಞಾನಿ-2.

ಪ್ರಾಧಿಕಾರ ಪಡೆಯೋಗ ತನುಖಾ ಪ್ರಮಾಣಗಳನ್ನು, ಮನವಿ.

✓2) ಡಾ. ಶ್ರೀಮದ್, ಪಿ.ಎಸ್.ಎಸ್.ಎಸ್.

ಪ್ರಾಧಿಕಾರ ಪಡೆಯೋಗ ತನುಖಾ ಪ್ರಮಾಣಗಳನ್ನು,

File 10

13/3/2004



ಪಶು ಆರೋಗ್ಯ ಮತ್ತು ಜೈವಿಕ ಸಂಸ್ಥೆ:
ಹೆಬ್ಬಾಳ, ಬೆಂಗಳೂರು-24

ಸಂಖ್ಯೆ: ಪ.ಆ.ಜೈ.ಸಂ/ಸಿಬ್ಬಂದಿ/ಡಿಪಿ/ವಿ-2002-03 ದಿ: 08.02.03

ಆವಳಿ

ವಿಷಯ: ವಿಜ್ಞಾನಿ-3 ಹುದ್ದೆಗೆ ಮುಂಬಡ್ತಿ ನೀಡುವ ಬಗ್ಗೆ

ಸಂಸ್ಥೆಯಲ್ಲಿ ಖಾಲಿ ಇರುವ ವಿಜ್ಞಾನಿ-3 ಹುದ್ದೆಗೆ ವಿಜ್ಞಾನಿ-2 ಹುದ್ದೆಯಿಂದ ಮುಂಬಡ್ತಿ ಮೂಲಕ ತುಂಬಲು ಕ್ರಮ ಕೈಗೊಳ್ಳಲಾಗುತ್ತದೆ. ಈ ಮುಂಬಡ್ತಿಗೆ ನಿಮ್ಮ ಅಭ್ಯರ್ಥಿತನವನ್ನು ಸಹ ಪರಿಗಣಿಸುವ ಸಂಬವವಿರುವುದರಿಂದ ನೀವು ಸಂಸ್ಥೆಯ ವಿಜ್ಞಾನಿಗಳ ಜೇಷ್ಠತಾ ಪಟ್ಟಿಯ ಮೇಲೆ ಕರ್ನಾಟಕ ಉಚ್ಚನ್ಯಾಯಾಲಯದಲ್ಲಿ ಹೂಡಿರುವ ರಿಟ್ ಅರ್ಜಿಗಳನ್ನು ವಾಪಸ್ಸು ಪಡೆದು/ಸಂಸ್ಥೆಯು ಹೂಡಿರುವ ರಿಟ್ ಅಪೀಲುಗಳ ವಿರುದ್ಧ ಕಂಟೆಸ್ಟ್ ಮಾಡದಿರುವ ಬಗ್ಗೆ ಸಲ್ಲಿಸಲು ಕೋರಿದೆ. ಸೂಕ್ತ ದಾಖಲಾತಿಗಳನ್ನು ಸಲ್ಲಿಸಿದನಂತರ ಮುಂದಿನ ಕ್ರಮವನ್ನು ಕೈಗೊಳ್ಳಲಾಗುವುದು.

ನಿರ್ದೇಶಕರು

1. ಡಾ.ಪಿ.ಗಿರಿಧರ ವಿಜ್ಞಾನಿ-2,
ಪ್ರಾಥೇಶಿಕ ಪಶುರೋಗ ತನಿಖಾ ಪ್ರಯೋಗಾಲಯ, ಮೈಸೂರು,
2. ಡಾ.ಶ್ರೀಪಾದ್, ವಿಜ್ಞಾನಿ-2,
ಪ್ರಾಥೇಶಿಕ ಪಶುರೋಗ ತನಿಖಾ ಪ್ರಯೋಗಾಲಯ,

ANNEXURE-P

ಪಶು ಅರೋಗ್ಯ ಮತ್ತು ಚೈವಿಕ ಸಂಸ್ಥೆ

ಹೆಬ್ಬಾಳ, ಬೆಂಗಳೂರು-24

ದಿ: 2.04

ಸಂಖ್ಯೆ:ಪ ಅಚ್ಚುಸಂ:ಸಿಬ್ಬಂದಿ: ಡಿಪಿ:ವಿ-3:02-03/39 25-

ಕ.ಆ. ಸಂಖ್ಯೆ: 256 :03-04

ಕಛೇರಿ ಆದೇಶ

ವಿಷಯ: ವಿಜ್ಞಾನಿ-2 ಹುದ್ದೆಯಿಂದ ವಿಜ್ಞಾನಿ-3 ಹುದ್ದೆಗೆ ಮುಂಬಡ್ತಿ ನೀಡುವ ಬಗ್ಗೆ

ಈ ಸಂಸ್ಥೆಯಲ್ಲಿ ವಿಜ್ಞಾನಿ-2 ಆಗಿ ಕಾರ್ಯ ನಿರ್ವಹಿಸುತ್ತಿರುವ ಡಾ.ಕೆ. ಶೀಪಾವ್, ಇವರಿಗೆ ವಿಜ್ಞಾನಿ-3(ರೋಗ ತನಿಖೆ) ಹುದ್ದೆಗೆ ವೇತನ ಶ್ರೇಣಿ ರೂ. 9580-260-10880-320-13440-380-14200 ರಲ್ಲಿ ಮುಂಬಡ್ತಿ ನೀಡಿ ಆದೇಶ ಹೊರಡಿಸಲಾಗಿದೆ. ಈ ಮುಂಬಡ್ತಿಯು ಸಂಸ್ಥೆಯ ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಸಲ್ಲಿಸಿರುವ ಮೇಲ್ಮನವಿ ಸಂಖ್ಯೆ:3951/2000ರ ಮೇಲೆ ಮತ್ತು ವಿಜ್ಞಾನಿಗಳ ಚೇತನತೆಯ ಮೇಲಿರುವ ಇತರ ರಿಬ್ಬ್ ಆರ್ಟಿಗಲ್ ಮೇಲೆ ಹೊರಬೀಳುವ ಅಂತಿಮ ತೀರ್ಪಿಗನು ಗುಣಮಾಗಿ ಬದಲಾವಣೆಯನ್ನು ಮಾಡುವ ಹಕ್ಕನ್ನು ಕಾಯ್ದಿರಿಸಿಕೊಳ್ಳಲಾಗಿದೆ.

ಇವರು ಮುಂದಿನ ಆದೇಶ ನೀಡುವವರೆಗೆ ಹಾಲಿ ಕಾರ್ಯ ನಿರ್ವಹಿಸುತ್ತಿರುವ, ಪ್ರಾದೇಶಿಕ ಪಶು ರೋಗ ತನಿಖಾ ಪ್ರಯೋಗಾಲಯ, ಬೆಳಗಾವಿ, ಇಲ್ಲಿನ ಕೆಲಸ ಕಾರ್ಯಗಳನ್ನು ನಿರ್ವಹಿಸುವುದು.

ಪ್ರತಿ:

1. ಜಂಟಿ ನಿರ್ದೇಶಕರು (ಸಂ)/ಲ ಉ
2. ಸಂಬಂಧಿಸಿದ ವಿಜ್ಞಾನಿಯವರಿಗೆ, ಪ್ರಾದೇಶಿಕ ಪಶು ರೋಗ ತನಿಖಾ ಪ್ರಯೋಗಾಲಯ, ಬೆಳಗಾವಿ,
3. ವಿಜ್ಞಾನಿಯವರ ವೈಯಕ್ತಿಕ ಕಡತಕ್ಕೆ
4. ಲೆಕ್ಕಾಧಿಕಾರಿಗಳಿಗೆ
5. ಕ.ಆ. ಪುಸ್ತಕಕ್ಕೆ



Not with enclosure

ಪಶು ಅರೋಗ್ಯ ಮತ್ತು ಜೈವಿಕ ಸಂಸ್ಥೆ

ಹೆಬ್ಬಾಳ, ಬೆಂಗಳೂರು-24

ಸಂಖ್ಯೆ:ಪ ಆಚೆಸಂ:ಸಿಬ್ಬಂದಿ:ವಿಜ್ಞಾನಿ-4/ಮುಂ:27:02-03

9.12.04

ಕ.ಆ.ಸಂಖ್ಯೆ: 216 :04-05

ಕಛೇರಿ ಆದೇಶ

ವಿಷಯ: ವಿಜ್ಞಾನಿ-3 ಹುದ್ದೆಯಿಂದ ವಿಜ್ಞಾನಿ-4 (ಲಸಿಕೆ ಉತ್ಪಾದನೆ) ಹುದ್ದೆಗೆ ಮುಂಬಡ್ತಿ
ನೀಡುವ ಬಗ್ಗೆ

ಉಲ್ಲೇಖ: ಸರ್ಕಾರದ ಪತ್ರದ ಸಂಖ್ಯೆ:ಪಸಂಮೀ 101 ಕಹಾಮ 2004 ದಿ: 6.12.04

ಉಲ್ಲೇಖದಲ್ಲಿ ನಮೂದಿಸಿರುವ ಸರ್ಕಾರದ ದಿನಾಂಕ: 6.12.04ರ ಪ್ರತಿದನ್ವಯ ಸಂಸ್ಥೆಯಲ್ಲಿ ವಿಜ್ಞಾನಿ-3 (ಗುಣ ನಿಯಂತ್ರಣ) ಹುದ್ದೆಯಲ್ಲಿ ಕಾರ್ಯ ನಿರ್ವಹಿಸುತ್ತಿರುವ ಡಾ.ಎಂ.ಎಂ. ಕುಮಾರ್ ಇವರಿಗೆ ವಿಜ್ಞಾನಿ-4 (ಲಸಿಕೆ ಉತ್ಪಾದನೆ) ಹುದ್ದೆಗೆ (ವೇತನ ಶ್ರೇಣಿ ರೂ. 10620-14960) ಕಂಡೀಷನಲ್ ಪದೋನ್ನತಿ ಬಡ್ತಿ ನೀಡಿ ಈ ತಕ್ಷಣದಿಂದ ಜಾರಿಗೆ ಬರುವಂತೆ ನೇಮಿಸಲಾಗಿದೆ. ಈ ಬಡ್ತಿಯು ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಬಾಕಿಯಿರುವ ರಿಟ್ ಅಫೀಲ್ ಸಂಖ್ಯೆ: ಪಿಟಿಷನ್ ನಂ:12139/1998 (ಎಸ್) ಮತ್ತು ರಿಟ್ ಅಫೀಲ್‌ಗಳ ಸಂಖ್ಯೆ:3951/2000, 3934/2000, 3922 ರಿಂದ 3929/2000, 3851/2000 ಮತ್ತು 6223 ರಿಂದ 6229/2000 ಗಳಲ್ಲಿ ನ್ಯಾಯಾಲಯವು ನೀಡಬಹುದಾದ ಅಂತಿಮ ತೀರ್ಪಿಗಳಿಗನುಗುಣವಾಗಿ ಈ ಆದೇಶವನ್ನು ಸ್ಥಿರೀಕರಿಸುವ/ಮಾರ್ಪಡಿಸುವ ಹಕ್ಕನ್ನು ಕಾಯ್ದಿರಿಸಿಕೊಳ್ಳಲಾಗಿದೆ ಎಂದು ಈ ಮೂಲಕ ಸ್ಪಷ್ಟೀಕರಿಸಲಾಗಿದೆ.

G. S. S. S.
ನಿರ್ದೇಶಕರು

ಪ್ರತಿ:

1. ಡಾ.ಎಂ.ಎಂ. ಕುಮಾರ್, ಪ್ರಭಾರಿ ವಿಜ್ಞಾನಿ-4 (ಲ ಉ) ಇವರಿಗೆ-ಇವರು ವಿಜ್ಞಾನಿ-3 (ಗುಣ ನಿಯಂತ್ರಣ) ಹುದ್ದೆಯ ಪ್ರಭಾರವನ್ನು ಡಾ.ಪಿ. ಗಿರಿಧರ್, ವಿಜ್ಞಾನಿ-3 ಇವರಿಗೆ ವಹಿಸುವುದು
2. ಲೆಕ್ಕಾಧಿಕಾರಿಯವರಿಗೆ
3. ಡಾ.ಪಿ. ಗಿರಿಧರ್, ವಿಜ್ಞಾನಿ-3 (ಎಪಿಡೆಮಿಯಾಲಜಿ) ಇವರು ವಿಜ್ಞಾನಿ-3 (ಗುಣ ನಿಯಂತ್ರಣ) ಹುದ್ದೆಯ ಪ್ರಭಾರವನ್ನು ಮುಂದಿನ ಆದೇಶದವರೆಗೆ ಹೆಚ್ಚುವರಿಯಾಗಿ ವಹಿಸಿಕೊಂಡು ನಿರ್ವಹಿಸುವುದು
4. ಅಧಿಕಾರಿಯ ವೈಯಕ್ತಿಕ ಕಡತಕ್ಕೆ
5. ಕ.ಆ.ಪುಸ್ತಕಕ್ಕೆ

Not for circulation

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 15th DAY OF NOVEMBER 2012

BEFORE

THE HON'BLE MR.JUSTICE SUBHASH B ADI

WRIT PETITION NOS.45293 TO 45299 OF 2012 (S-PRO)BETWEEN:

1. DR. S.R. JAYAKUMAR
S/O K SEETHARAMIAH
AGED 64 YEARS
R/AT NO.20, "BENAKA BHASKARA"
8TH CROSS, BHUVANESHWARINAGAR
BANGALORE-560024
2. DR MAYA MADHUKAR BABU
S/O VAJRVELU
AGED ABOUT 66 YEARS
R/AT NO.4, 6TH MAIN
SFS 407, 4TH PHASE
NEWTOWN, YELAHANKA
BANGALORE-560064
3. DR M. M KUMAR
S/O MARULAPPA
AGED 64 YEARS
R/AT NO. 1070, 25TH MAIN ROAD
15TH CROSS, BANASHANKARI II STAGE
BANGALORE-560070
4. DR M D VENKATESHA
S/O DASAPPA GUPTA M R
AGED 51 YEARS
WORKING AS JOINT DIRECTOR
INSTITUTE OF ANIMAL HEALTH AND VETERINARY
BIOLOGICALS, HEBBAL
BANGALORE-24



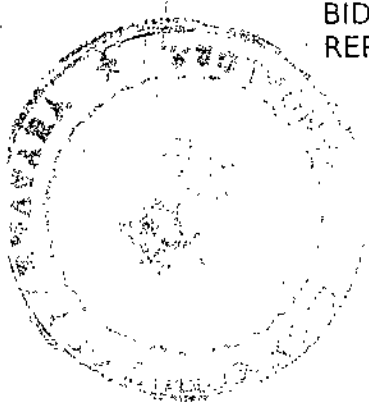
This Certified copy contains 64 Pages
And Copying charges of Rs. 15/-
Received

5. DR N G RAMESH BABU
S/O GOVINDA SHETTY N R
AGED 52 YEARS
R/AT NO.61, 6TH CROSS
PAI LAYOUT, HULIMAVU
BANNERUGHATTA ROAD
BANGALORE-560076
 6. DR K SRIPAD
S/O KRISHNARAO R
AGED 50 YEARS
WORKING AS DEPUTY DIRECTOR
INSTITUTE OF ANIMAL HEALTH AND VETERINARY
BIOLOGICALS, HEBBAL
BANGALORE-24
 7. DR P GIRIDHAR
S/O S PAPANNA
AGED 54 YEARS
WORKING AS JOINT DIRECTOR
INSTITUTE OF ANIMAL HEALTH AND VETERINARY
BIOLOGICALS, HEBBAL
BANGALORE-24
- ...PETITIONERS

(BY SRI.MURTHY D.L., ADV. FOR SRI. H MOHAN KUMAR, ADV.)

AND:

1. STATE OF KARNATAKA
DEPT. OF ANIMAL HUSBANDRY AND
FISHERIES (ANIMAL HUSBANDRY)
VIKASA SOUDHA
BANGALORE-01
REPRESENTED BY ITS
PRINCIPAL SECRETARY
2. KARNATAKA VETERINARY
ANIMAL & FISHERIES SCIENCES
UNIVERSITY, NANDI NAGAR
BIDAR-585 401
REP BY ITS REGISTRAR



3. THE DIRECTOR
THE INSTITUTE OF ANIMAL HEALTH
AND VETERINARY BIOLOGICALS, HEBBAL
BANGALORE-24 ...RESPONDENTS

(SRI.RAGHAVENDRA G.GAYATHRI, HCGP FOR R1
SRI.SHASHIDHAR, ADV. FOR R3)

These writ petitions are filed under Articles 226 and 227 of the Constitution of India praying to issue a writ in the nature of mandamus directing the 3rd respondent to implement the order of this Hon'ble Court dated 6.4.2000 in W.P.No.2522/1998 c/w W.P.Nos.3863 to 3865/1998 c/w W.P.Nos.4183 to 4186/1998 vide Annexures-B and C respectively and etc.

These Petitions coming on for Preliminary Hearing this day, the Court made the following:-

ORDER

Heard Sri.Murthy D.L., learned counsel for the petitioners and the learned Government Pleader for the respondent No.1.

2. The only relief that is sought for by the petitioners is for a direction to the 3rd respondent to implement the orders passed by this Court in W.P.No.2522/1998 c/w W.P.Nos.3863 to 3865/1998 c/w W.P.Nos.4183 to 4186/1998 and also for a direction, directing the 2nd respondent to accord the promotion to the petitioners with effect from the date on



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WP Nos.45293-99/2012

4

which their immediate juniors were promoted to different cadres as per the order of this Court in WP No.2522/1998.

3. It is needless to state that if this Court has already issued direction, respondent No.3 is bound to comply with the same. As such, no further direction is necessary. However, it is made clear that if the order of this Court is not complied, respondent No.3 to comply with the same as early as possible not later than two months from the date of receipt of copy of this order.

Accordingly, petitions are disposed of.



Sd/-
JUDGE

"TRUE COPY"

S. V. 1/2

Section Officer
High Court of Karnataka
Bangalore-560 001.

- The date on which the application was
21.01.13
The date on which charges and additional
charges if any were called for
The date on which charges and additional
charges if any are deposited/paid
01.02.13
The date on which the copy is ready
01.02.13
The date of notifying that the copy is ready
for delivery
05.02.13
The date on which the applicant is required
to appear on or before
The date on which the copy is delivered to
the Applicant
4/2/13. M. V. S.

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ANNEXURE- S

To :

The Director,
Institute of Animal Health and
Veterinary Biologicals,
Hebbal, Bangalore 560024.

Sir,

Sub : Requisition to implement the order of the Honourable

High court in W.P. No. 2522/1998 and other connected

With writ petitions 3863 - 3865/1998 connected with 4183-
4186/1998 and W.P.No.45293 - 45299/2012.

Ref.

It is submitted that, we have been agitating the matter of our seniority, promotion and consequential benefits since 1998. But unfortunately we had to move the Hon'ble High Court in W.P.No. 45293 to 45299/2012 and the Hon'ble High Court has disposed off the matter directing your kind self to comply with the earlier order within two months from today. *We request you to kindly revise the seniority list, accord due promotion, fix the pay scales and extend the monetary benefit as per the court orders.*

25/11
We request you to do so the same at the earliest. Certified copy of the order of Hon'ble High court dated 15.11.2012 and Xerox copy of the order of Hon'ble High court dated 6.4.2000 are herewith enclosed for your kind information.

Thanking you

Bangalore

Date: 22.11.2012

Yours sincerely

1.

(Dr.S.R.JAYKUMAR)

2.

(DR.M.M.KUMAR)

3.

(DR.M.D.VENKATESHA)

*Ref ① 22.11
Ref ② L. 7.3.13 & Reproduct
K VAFS & Reproduct. Agency
Mundurid idia
Ref: No. 0244
dt. 27.05.13*

07.03.2013

To,

The Registrar,
Karnataka Veterinary, Animal
& Fisheries sciences University,
Nandi Nagar, Bidar- 585401.

Through the Director,
The Institute of Animal Health
& Veterinary Biologicals,
Hebbal,
Bangalore- 560 024.

Respected sir,

Sub: Regarding implementation of the order of Hon'ble High Court of Karnataka in W.P.No. 2522/1998, connected with W.P. Nos. 3863-3865/1998 C/W W.P.Nos. 4183-4186/1998 and W.P. No. 45293 -45299/2012.

1. As you are aware of the fact that Dr. C. Renuka Prasad S/o Late C. Channa Veerappa had approached the Hon'ble High Court of Karnataka, in W.P. No. 2522/1998 challenging the seniority list of Deputy Directors prepared and published by the institute in No. IAH/EST/JESTHA/97-98, dated 30.12.1997. In the said writ petition it was sought for preparing and publishing final seniority list of Deputy Directors / Scientist -III and grant promotion to the post of Joint Director / Scientist -IV w.e.f 01.03.1993, the date on which Dr. R. Lakshminarayana was promoted with all consequential service and monetary benefits.

2. Pursuant of filing of the W.P. No. 2522/1998 the under signed had also filed W.P.Nos. 4183-4186/1998 C/W W.P. Nos. 3861-3865/1998.

3. In all the above said writ petitions the Hon'ble High Court opined that while absorbing Deputationist in the institute from a particular date pales in to insignificance and therefore the case of the petitioners have to be considered by placing them over and above the persons who are absorbed into the institute. The Hon'ble High Court by an order dated 06.04.2000 disposed of all the above said writ petitions by quashing the seniority list dated 30.12.1997 and a direction was issued to the then Society to prepare fresh seniority list of Deputy Directors keeping in view the observations made in the order within 6 months from the date of receipt of a copy of the order.

4. The Institute being aggrieved by the order dated 06.04.2000 approached Hon'ble High Court by filing writ appeals. Various other persons who were likely to be affected by the order also filed writ appeals. All such writ appeals have been withdrawn by a common order dated 02.09.2003. Since then the institute had been putting off the implementation of the order passed by the Hon'ble High Court in W.P. No. 2522/1998 by giving a reason that Writ appeals are still

pending before the Hon'ble High Court. Believing the words of the Authorities we were under the impression that the writ appeals are still pending and did not pressurise the authorities to implement the order. When we came to know very recently about the fact that the writ appeals were disposed off by a common order dated 02.09.2003, having left with no other alternative, filed W.P. No. 45293-45299/2012, seeking a direction to the authority to implement the order in W.P. No. 2522/1998. The Hon'ble High Court disposed off

the said W.P. with a direction to the authorities to comply with the order passed in W.P. No. 2522/1998 as early as possible not later than 2 months from the date of receipt of copy of the order.

5. It is further submitted that, we have brought the order of this Hon'ble Court to your kind notice along with representation dated 22.11.2012. As you are aware of all the legal position and the consequences of having not been implemented the order of the Hon'ble High Court. We, regret to bring it to your kind notice that you are already in contempt of not being implementing the order.

6. Therefore, we request you to kindly expedite the implementation of the order of the Hon'ble High Court as directed in W.P. No.

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2522/1998 and other connected writ petitions and also W.P. No. 45293-45299/2012, in the interest of justice and equity.

7. We are enclosing Xerox copies of all relevant orders of the Hon'ble High Court.

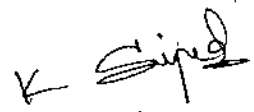
Thanking you

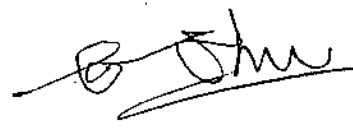
Bangalore

Date :

yours faithfully


(DR.M.D.VENKATESHA)


(DR.K.SRIPAD)


(DR.P.GIRIDHAR)

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ANNEXURE- U

KVAFSU

INSTITUTE OF ANIMAL HEALTH AND VETERINARY BIOLOGICALS
Hebbal, Bangalore

OFFICIAL MEMORANDUM

No. IAH / EST / WP 45293-45299 / 143 / 12-13 / 2727 **Date: 28.12.12**

Sub : Seniority list of scientists as on 30.12.1997

Ref : Official memorandum No. IAH / Est / WP-45293 - 45299 /
143 / 12-13 / 2727 dated 10.12.2012

In compliance of the order dated 15.11.2012 of the Honourable High Court of Karnataka in WP 45293-45299/2012-(S-pro), the seniority list of scientists issued vide Officer Order No. IAH / Est / Seniority / 97-98, Kar - AA No. 856 / 97-98 dated 30.12.1997 was revised and published as provisional seniority list vide reference above.

Objections were called from the persons affected so as to reach the Director, IAH & VB, Hebbal, Bangalore 560024, within 15 days from the date of issuance of provisional seniority list.

The objections received within the time specified have been considered as under namely :

1. Dr.G.J.Agnihotri (Sl.No.15 in the provisional seniority list) has stated that the judgement of the Honourable High Court in WP 2522/ 1998 is against the Karnataka Government servants seniority rule and there is a need to go for appeal etc., His objection is rejected as he is free to file appeal if the judgement has affected his interest.
2. Dr.N.Suresh (Sl.No.22 in the provisional seniority list) has enclosed five certificates of his credentials and has requested for due weightage. His objections were considered and rejected as there is no provision to give weightage in seniority.
3. Dr.G.S.Srinivasalu (Sl.No.24 in the provisional seniority list) has requested for one month time to take legal opinion in this regard to file objection under Karnataka Civil Services Act 1978. Fifteen days was provided for filing objections for draft rules.

The Honourable High Court of Karnataka in its order dated 15.11.2012 in WP 45293 - 45299/ 2012(S-Pro) had directed to comply the order within two months from the date of receipt of copy of the judgement. Hence no more time can be granted. His request for extension to file objection is rejected.

4. Dr.N.G.Ramesh Babu(Sl.No.9 in provisional seniority list) has stated that his date of voluntary retirement has been mentioned as 31.10.2002 but it should have been 31.10.2003. His observation is being attended.

Since no other objections were received within the time specified under reference above, the final seniority list of scientists dated 30.12.1997 is published as hereunder

Sl. No.	Name	Date of Birth	Date of Appointment /Absorption in the Institute	Remarks
1	2	3	4	5
1	Dr. T. Gopal	10-10-1939	02-08-1979	Retired as on 31.10.1997
2	Dr. M. Ananth	03-02-1935	01.04.1987	Retired on 28.02.1993
3	Dr. R.P. Srinivas	15-01-1939	01.04.1987	Retired on 31.01.1997
4	Dr. C. Renukprasad	20-07-1954	13-12-1979	Presently working as Vice Chancellor of KVAFSU, Bidar, Karnataka
5	Dr. S.R. Jaykumar	02-12-1947	06-05-1985	Retired on 31.12.2005
6	Dr. M.M. Babu	09.12.1945	30-04-1985	Retired on 31.12.2003
7	Dr. M.M. Kumar	19-05-1948	02-05-1985	Retired on 31.05.2006
8	Dr. M.D. Venkatesha	07-05-1961	20-09-1986	
9	Dr. N.G. Ramesh Babu	05-05-1960	29-09-1986	Retired from service on VR on 31-10-2003
10	Dr. K. Sripad	10-06-1962	20-10-1986	
11	Dr. P. Giridhar	23-09-1958	05-01-1987	
12	Dr. S.V. Subramanyam	26-02-1954	22-01-1987	Terminated from service 1992
13	Dr. A.G. Gokak	05-07-1940	01.04.1987	Retired on 31.07.1998

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1	2	3	4	5
14	Dr. R. Lakshminarayana	25-01-1940	01.04.1987	Retired on 31.01.1998
15	Dr. G.J. Agnihotri	07-09-1940	01.04.1987	Retired on 30.09.1998
16	Dr. M. Ramaswamy	14-01-1943	01.04.1987	Retired on 31.01.2001
17	Dr. S. Premalatha	19-12-1943	01.04.1987	Retired on 31.12.2001
18	Dr. A.J. Bragitha	26-09-1941	01.04.1987	Retired on 30.09.1999
19	Dr. Abdulla Sharieff	22-10-1938	01.04.1987	Retired on 31.10.1996
20	Dr. M.Muddarenggowda	28-07-1941	01.04.1987	Retired on 31.07.1999
21	Dr. K.L. Revappa	18-05-1944	01.04.1987	Retired on 31.05.2002
22	Dr. N. Suresh	07-01-1940	01.04.1987	Retired on 31.01.1998
23	Dr. Syed Muktar Ahmed	04.03.1943	01.04.1987	Retired on 31.03.2001
24	Dr. G.S. Srinivasulu	01.08.1944	01.04.1987	Retired on 31.08.2002
25	Dr. K.R. Ramanatha	29.07.1946	01.04.1987	Retired on 31.07.2004
26	Dr. M. Sobha-Rani	05-07-1961	02-08-1988	
27	Dr. S.M. Byregowda	22.07.1960	30-09-1988	On verification of SR the date of joining is corrected
28	Dr. Raveendra Hegde	08.04.1963	29-09-1988	On verification of SR the date of birth is corrected
29	Dr. H.K. Muniyellappa	02-07-1963	02-09-1992	Revised seniority list issued as per Hon'ble High Court decision dt: 13-2-12 on WP NO. 7439/2008 vide this office order No. IAH/EST/S-1/93-94 QO No. 54/12-13, dt: 6-6-2012
30	Dr. G.K. Chandrakala	26.07.1964	02-09-1992	
31	Dr. Srikantha Kowalli	24-04-1964	24-08-1992	
32	Dr. B.Y. Sridhara	04.02.1963	02-09-1992	Retired from service on VR on 3-10-2007
33	Dr. Asha Mayanna	30.09.1962	23-05-1994	
34	Dr. V.R. Girish	29-06-1964	23-06-1994	Retired from service on VR on 31-3-2006

APPROVAL OF THE UNIVERSITY FOR THE ABOVE
SENIORITY LIST IS ACCORDED AS PER THE DECISION
OF HON'BLE HIGH COURT OF KARNATAKA

1002492/5/13

H.D. Chaudhary
28/12/12
DIRECTOR

CC to

Registrar
Karnataka Veterinary, Animal &
Fisheries Sciences University
BIDAR-585401

1. The Registrar, KVAFSU, Bidar for kind information
2. All the persons whose seniority is altered
3. Notice Board

24983/13
ANNEXURE: V

H. Mohan Kumar

125

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 13th DAY OF JUNE 2013

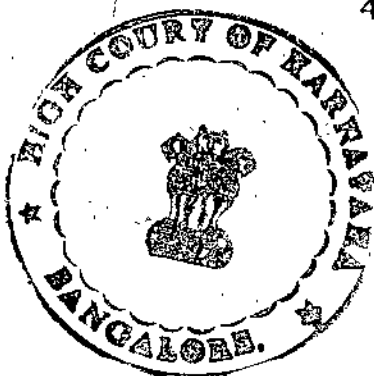
PRESENT

THE HON'BLE MR. JUSTICE N.KUMAR
AND
THE HON'BLE MR. JUSTICE V. SURI APPA RAO

CCC NOS.728-732/2013(Civil)

BETWEEN :

1. Dr.S.R.Jayakumar,
S/o.K.Seetharamiah,
Aged 64 years,
R/at No.20,
"Benaka Bhaskara", 8th Cross,
Bhuvaneshwarinagar,
Bangalore - 560 024.
2. Dr.M.M.Kumar,
S/o.Marulappa,
Aged 64 years,
R/at No.1070,
25th Main Road,
15th Cross,
Banashankari II Stage,
Bangalore - 560 070.
3. Dr.N.G.Ramesh Babu,
S/o.Govinda Shetty N.R.
Aged 52 years,
R/at No.61, 6th Cross,
Pai Layout, Hulimavu,
Bannerughatta Road,
Bangalore - 560 076.
4. Dr.K.Sripad,
S/o.Krishnarao R.,



This Certified copy contains.....4.....Pages
And Copying charges of ₹.....15.....
Received

126
Aged 50 years,
Working at Deputy Director,
Institute of Animal Health
And Veterinary, Biologicals,
Hebbal, Bangalore - 24.

5. Dr.P.Giridhar,
S/o.S.Papanna,
Aged 54 years,
Working as Joint Director,
Institute of Animal Health
And Veterinary, Biologicals,
Hebbal, Bangalore - 24.

...COMPLAINANTS

(By Sri.H.Mohan Kumar, Adv.)

AND :

1. H.M.Jayaprakash,
S/o.H.Manjappa Gowda,
Age 54 years, Registrar,
Karnataka Veterinary,
Animal & Fisheries
Sciences University,
Nandi Nagar,
Bidar - 585 401.

2. Dr.M.D.Venkatesha,
S/o.Dasappa Gupta M.R.,
Aged 51 years,
Director in-charge,
Institute of Animal Health
And Veterinary, Biologicals,
Hebbal, Bangalore - 24.

...ACCUSED

(By M/s.Kesvy and Co., Advs.)

These CCCs are filed under Sections 11 and 12 of
the Contempt of Courts Act by the complainant,
wherein he prays to punish the accused for disobeying
the order dated 15.11.2012 passed by the Hon'ble High



Court in W.P. Nos.45293-299/2012(S-RO) vide Annexure 'A'.

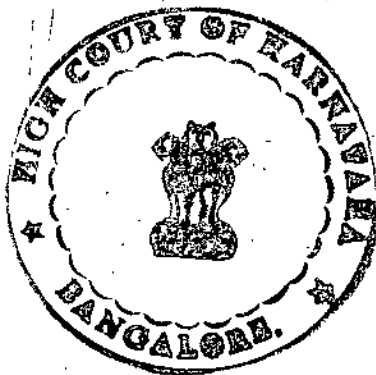
These CCCs coming on for orders, this day, **N.Kumar J.**, delivered the following:

ORDER

These contempt petitions are filed complaining of disobedience of the order passed on 15th November 2012 in W.P. Nos.45293-299/2012 where a direction was issued to comply with the order passed in W.P.

No.2522/1998 within two months. In W.P.No.2522/1998 disposed of on 6th April 2000, a direction was issued to the accused to prepare fresh seniority list of Deputy Directors keeping in view the observations made during the course of the order, within six months from the date of receipt of a copy of the order. The complainants instead of filing a contempt petition, they filed a writ petition.

2. The learned counsel appearing for the accused, after service, submits that the Seniority List has been prepared and duly published and a copy of the same is



also handed over to the learned counsel appearing for the complainants.

3. In view of the same, there is substantial compliance of the order, though not within the time prescribed by the Court, but belatedly. Hence, the contempt proceedings are **dropped**.

Any other grievance of the complainants has to be worked out in an appropriate forum and not in this contempt petition.



Sd/-
JUDGE

Sd/-
JUDGE

SPS

'TRUE COPY'

Section Officer, 18/11/13
High Court of Karnataka
Bangalore - 560 001

- a) The date on which the application was made 14/6/13
- b) The date on which charges and additional charges if any, are called for 28/6/13
- c) The date on which charges and additional charges, if any are deposited/Paid 28/6/13
- d) The date on which the copy is ready 28/6/13
- e) The date of notifying that the copy is ready for delivery 28/6/13
- f) The date on which the applicant is required to appear on or before 28/6/13
- g) The date on which the copy is delivered to the Applicant 14/6/13
- h) Examined by [Signature]

ANNEXURE- W

129

KVAFSU

INSTITUTE OF ANIMAL HEALTH AND VETERINARY BIOLOGICALS
Hebbal, Bangalore

No. IAH/EST/WP-45293-299/143/12-13/2934

Date: 28/12/2012

To:
The Registrar,
KVAFSU, Bidar.

Sub: Promotions to various cadre by creating Supernumerary posts -
reg

Ref: 1. IAH/EST/WP-45293-299/143/12-13/2928 dated
28.12.12

In Writ Petition No. 2522 of 1998 the Hon'ble High Court of Karnataka, vide order dated 6th day of April, 2000 allowed the Writ Petition and set aside the Seniority List published in Office order No. IAH/EST/ Seniority/ 97-98, Ka-AA No. 856/97-98 dated 30-12-1997 with a direction to prepare a fresh seniority list. In Writ Petitions No. 4183 to 4186/1998 c/w 3863 to 3865/1998 the Hon'ble High Court of Karnataka vide order dated 6th day of April, 2000 allowed the writ petitions with an observation "The issues raised and relief sought for by the petitioners in these petitions are identical with the issues raised and considered by this court in W.P. 2522/1998".

Several Writ Appeals No's 3922-29/2000 and 3951/2000 were filed in the High Court of Karnataka challenging the Judgement in W.P. No. 2522/1998. The Hon'ble High Court vide its Judgement dated 2nd day of September 2003 dismissed the Writ Appeals as they were not pressed. In Writ Petition No's 45293 to 45299 of 2012 (S-PRO) the Hon'ble High Court of Karnataka by its order dated 15th November 2012 made the following order namely:-

"ORDER"

1. Heard Sri. Murthy D.L. learned counsel for the petitioners and the learned Government pleader for the respondent No.1.
2. The only relief that is sought for by the petitioners is for a direction to the third respondent to implement the orders passed by this court in WP No. 2522/1998 C/w WP No's. 3863 to 3865/1998, c/w 4183 to 4186/1998 and also for a direction, directing the second respondent to accord the promotions to the petitioners with effect from the date on

which their immediate juniors were promoted to different cadres as per the order of this court in WP No. 2522/1998.

3. It is needless to state that if this court has already issued direction, respondent No.3 is bound to comply the same. As such, no further direction is necessary. However, it is made clear that if the order of this court is not complied, respondent No.3 to comply with the same as early as possible not later than two months from the date of receipt of copy of this order. Accordingly petitions are disposed off".

In order to comply the directions of the Hon'ble High Court of Karnataka, the seniority list of Scientists was revised and published vide OM No. IAH/EST/WP-45293-299/143/12-13/2928 dated 26.12.12.

In the seniority list published under reference above, Dr.R.Lakshminarayana, Serial Number 14 was promoted to the post of Scientist - 3 on 13.6.1987 and was promoted to the post of Scientist - 4 (Joint Director) on 1.3.1993 and to the post of Director on 7.11.1997. As per the court order of Wp.45293-45299/2012, his seniors in the seniority list from serial number 4 to 11 are to be promoted to different cadres with effect from the dates of promotion of their junior Dr.R.Lakshminarayana by creating supernumerary posts. Eight supernumerary posts are to be created in accordance with OM No FD 1485 RS 60 dated 26.10.1960.

In a case of The commissioner, Karnataka Housing Board vs C.Muddaiah, 2008(1) Kar.L.J. 249(SC) the Hon'ble Supreme Court has given a judgement upholding the judgement of the lower courts and directed the Karnataka Housing Board to extend promotion and consequential benefits to the petitioner.

In the circumstances, in order to comply with the judgement of Hon'ble High Court of Karnataka in WP No 45293 - 45299 / 2012, the following officers are to be promoted to the respective posts with effect from the dates mentioned against their names,

Name of the officer and his Sl.No. in the Priority List	Scientist -3		Scientist -4 (Joint Director)		Director		Remarks
	Actual date of promotion	Retrospecti ve date of promotion	Actual date of promotion	Retrospect ive date of promotion	Actual date of promotion	Retrospecti ve date of promotion	
Dr.C.Renuka Prasad - Sl. No. 4	1.3.1993	13.6.1987	13.6.2002	1.3.1993	27.6.2007	7.11.1997	The supernumerary post of Director seizes to exist on account of being appointed as Director of IAH & VB with effect from 27.6.2007. Presently working as Hon'ble Vice Chancellor, KVAFSU since 21.9.2012. Hence the post of director, IAH & VB is vacant.
Dr.S.R.Jaykumar - Sl. No. 5	1.3.1993	13.6.1987		1.3.1993		7.11.1997	The supernumerary post seizes to exist due to retirement by superannuation on 31.12.2005.
Dr.M.M.Babu - Sl. No. 6	1.3.1993	13.6.1987		1.3.1993		7.11.1997	The supernumerary post seizes to exist due to retirement by superannuation on 31.12.2003
Dr.M.M.Kumar - Sl. No.7	1.3.1993	13.6.1987	9.12.2004	1.3.1993		7.11.1997	The supernumerary post seizes to exist due to retirement by superannuation on 31.05.2006
Dr.M.D.Venkatesha - Sl. No. 8	23.11.2002	13.6.1987	27.6.2007	1.3.1993		7.11.1997	Supernumerary post of Director to be continued

Dr.N.G.Ramesh Babu - Sl. No. 9	23.11.2002	13.6.1987		1.3.1993		7.11.1997	The supernumerary post ceases to exist due to retirement by voluntary retirement on 31.10.2003.
Dr.K.Sripad - Sl. No. 10	25.2.2004	13.6.1987		1.3.1993		7.11.1997	Supernumerary post of Director to be continued
Dr.P.Giridhar - Sl. No. 11	25.2.2004	13.6.1987	5.8.2010	1.3.1993		7.11.1997	Supernumerary post of Director to be continued

The supernumerary posts which have to be created as per the above table are only proforma promotion being effected for the post of Scientist-3 w.e.f. 13.6.1987 and for the post of Scientist-4 w.e.f 1.3.1993 and for the post of Director w.e.f 7.11.1997, the date on which their immediate junior Dr.R.Lakshminarayana was promoted to different cadres.

In view of the scientist against Sl.No.4 Dr.C.Renukaprasad being appointed as Director of IAH & VB with effect from 27.6.2007, the supernumerary post of Director supposed to be held by Dr.C.Renukaprasad ceases to exist. and Scientists against Sl.No. 5,6,7 and 9 have retired by superannuation / voluntary retirement. Hence those supernumerary posts ceases to exist. Presently at the time of this proposal the Scientists against Sl.No. 8, 10 and 11 are in service and hence those supernumerary posts of Director need to be administratively accommodated. Further, Dr.C.Renukaprasad has been appointed as Hon'ble Vice Chancellor, KVAFSU w.e.f 21.9.2012, hence the post of and the vacant post of the Director may be adjusted against one of the three

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supernumerary posts of Director and ultimately two supernumerary posts of Director needs to be administratively accommodated.

They shall be entitled to the fixation of pay and arrears of salary from the dates of retrospective promotions indicated against their names

Hence, I request you to kindly accord approval to implement the above proposal in order to comply with the directions of Hon'ble High Court of Karnataka.

Thanking you

Yours faithfully

CC to

The Advocate General, High Court of Karnataka, Bangalore for kind information.

J. D. Laurentine
- 28/12/17
DIRECTOR
EN

KARNATAKA VETERINARY, ANIMAL & FISHERIES SCIENCES UNIVERSITY
Nandinagar, PB No.6, BIDAR-585401, Karnataka

OFFICE OF THE REGISTRAR



Phone : 08482-245241 /245360
EPABX: 08482-245009/106/107/108
Fax : 08482-245241,
Web : www.kvafsu.kar.nic.in

No.R/Rett/WP.No.2522/45293-99/2013-14 / 1839 Date: 12.07.2013

NOTE

Sub: Implementation of the order of the High Court of Karnataka in WP.No.2522/1998 and WP.No 45293-45299/2012- reg.

Ref: 1. Representation of Dr. M D Venkatesha Dt: 10.06.2013.
2. Order of the Hon'ble High Court Dt: 13.06.2013.
3. Approval of the Hon'ble Vice Chancellor Dt: 11.07.2013.

As you are aware you have filed CCC (Civil) No.728-732/2013 before the Hon'ble High Court of Karnataka against the Registrar of the University as well as the Director of IAH&VB, Bangalore. The said contempt proceedings were listed on 13.06.2013, on which date we have produced the seniority list published by the Institute as well as the University dated 28.12.2012. In fact the Director of the Institute in Compliance with the court orders referred to the above and has published the final seniority list of the Deputy Directors of the Institute on 28.12.2012. In view of the same, both the University and the Institute have complied with the directions of the court passed in the Writ petitions referred above. You are also represented by senior counsel in the High court of Karnataka and accordingly the contempt proceedings were dropped by the Division Bench of the Hon'ble High Court of Karnataka.

In so far the promotion to you with retrospective effect is connected, the same was not subject matter before any courts in law. Therefore, considering the same does not arise. Further, you have not stated in your representation Dt: 10.06.2013 how you are entitled for any promotions to any of the higher post. Therefore, the University is not in the position to consider your case for any further promotion without there being eligibility, without there being any provision in C&R Rules and specific court order to that effect. Unless and until you point out about your rights to promote to any higher cadre with retrospective effect under the law, the University is not in a position to consider your case for any promotion, please note.

Thanking you,

Yours faithfully,

To:

Dr. M D Venkatesh,
Director(I/c),
Institute of Animal Health
& Veterinary Biologicals,
Hebbal, Bangalore-24.

REGISTRAR
REGISTRAR

Karnataka Veterinary, Animal &
Fisheries Sciences University,
Nandinagar, PB. No. 6, Bidar-585 401

Copy to: 1. The Hon'ble Vice Chancellor for information.
2. Office copy.

KARNATAKA VETERINARY, ANIMAL & FISHERIES SCIENCES UNIVERSITY
Nandinagar, PB No.6, BIDAR-585401, Karnataka

OFFICE OF THE REGISTRAR



Phone : 08482-245241 /245360
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No.R/Rett/WP.No.2522/45293-99/2013-14 / 1839 Date: 12.07.2013

NOTE

Sub: Implementation of the order of the High Court of Karnataka in WP.No.2522/1998 and WP.No 45293-45299/2012- reg.
Ref: 1. Representation of Dr. K Sripad Dt: 10.06.2013.
 2. Order of the Hon'ble High Court Dt: 13.06.2013.
 3. Approval of the Hon'ble Vice Chancellor Dt: 11.07.2013.

As you are aware you have filed CCC (Civil) No.728-732/2013 before the Hon'ble High Court of Karnataka against the Registrar of the University as well as the Director of IAH & VB, Bangalore. The said contempt proceedings were listed on 13.06.2013, on which date we have produced the seniority list published by the Institute as well as the University dated 28.12.2012. In fact the Director of the Institute in Compliance with the court orders referred to the above and has published the final seniority list of the Deputy Directors of the Institute on 28.12.2012. In view of the same, both the University and the Institute have complied with the directions of the court passed in the Writ petitions referred above. You are also represented by senior counsel in the High court of Karnataka and accordingly the contempt proceedings were dropped by the Division Bench of the Hon'ble High Court of Karnataka.

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REGISTRAR
REGISTRAR

Karnataka Veterinary, Animal &
 Fisheries Sciences University
 Nandinagar, P.B. No. 6, Bidar-585 401

To:

Dr. K Sripad,
 Institute of Animal Health
 & Veterinary Biologicals,
 Hebbal, Bangalore-24.

Copy to: 1. The Hon'ble Vice Chancellor for information.
 2. Office copy.

KARNATAKA VETERINARY, ANIMAL & FISHERIES SCIENCES UNIVERSITY
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No.R/Rett/WP.No.2522/45293-99/2013-14/839 Date: 12.07.2013

NOTE

Sub: Implementation of the order of the High Court of Karnataka in WP.No.2522/1998 and WP.No 45293-45299/2012- reg.

Ref: 1. Representation of Dr. P Giridhar Dt: 10.06.2013.

2. Order of the Hon'ble High Court Dt: 13.06.2013.

3. Approval of the Hon'ble Vice Chancellor Dt: 11.07.2013.

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Karnataka Veterinary, Animal &
 Fisheries Sciences University
 Nandinagar, P.B. No. 6, Bidar-585 401

To:

Dr. P Giridhar,
 Joint Director,
 Institute of Animal Health
 & Veterinary Biologicals,
 Hebbal, Bangalore-24.

Copy to: 1. The Hon'ble Vice Chancellor for information.
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